

THE NCA HUB

Examination Preparation

CANADIAN EVIDENCE LAW

EXAM ANSWER TEMPLATES

36 Complete IRAC Templates | All Syllabus Topics | Replace Placeholders & Apply

Revised April 2025 Syllabus | Exam Date: April 14, 2026

Companion to: NCA Evidence Law Strategic Notes

© 2026 The NCA Hub | www.thencahub.com | All Rights Reserved

NOTICE OF COPYRIGHT AND INTELLECTUAL PROPERTY RIGHTS

This document is the exclusive intellectual property of The NCA Hub, protected under the Copyright Act, R.S.C. 1985, c. C-42 (Canada) and applicable international copyright treaties.

Restrictions on Use

No part of this publication may be reproduced, distributed, transmitted, displayed, published, broadcast, adapted, translated, modified, reverse-engineered, or otherwise exploited in any form or by any means without the prior written permission of The NCA Hub. This prohibition includes:

- Photocopying, scanning, or digitizing any portion of this work.
- Uploading, posting, or sharing this work on any website, social media platform, cloud storage service, or file-sharing service.
- Distributing, lending, renting, selling, sublicensing, or otherwise transferring this work to any third party.
- Creating derivative works based on this publication.
- Using this work for any commercial purpose, including tutoring, teaching, training, or course preparation, without express written authorization.
- Inputting, feeding, or otherwise using the content of this work to train, develop, or improve any artificial intelligence, machine learning, or large language model system.

Disclaimer

This publication is intended solely for educational and examination preparation purposes. The templates and analysis contained herein do not constitute legal advice. The NCA Hub makes no representations or warranties regarding accuracy, completeness, or suitability for any purpose. Legal rules and interpretations may change; verify all principles against current authorities.

Non-Affiliation Statement

The NCA Hub is an independent educational resource provider. We are not affiliated with, endorsed by, or connected to the National Committee on Accreditation (NCA), the Federation of Law Societies of Canada, or any provincial or territorial law society. NCA™ is a trademark of the Federation of Law Societies of Canada.

Enforcement

Unauthorized reproduction, distribution, or use of this work may result in civil and criminal penalties under applicable copyright law. Digital watermarking and tracking technologies may be employed to identify unauthorized copies.

The NCA Hub | thencahub.com | First Edition — 2026

HOW TO USE THESE TEMPLATES

This document provides 36 complete IRAC analysis templates for every topic on the NCA Canadian Evidence Law syllabus (Revised April 2025). These templates are designed as strategic frameworks, not scripts to be copied verbatim into an exam.

Purpose

Each template provides a structured analytical framework you can adapt to any fact pattern the exam presents. The Application section — using 'Because [X]...' language — is deliberately the most developed part, as it is where the majority of marks are awarded. The law is pre-written; your job is to fill in the specific facts.

Three-Step Exam Process

1. **IDENTIFY:** Read the question once. Note in the margin: (a) which evidence issue is raised (hearsay? character? confession? privilege?); (b) is this criminal or civil? — this determines which rules apply; (c) what specific evidence is being challenged and why. This takes 3–4 minutes and prevents missing issues.
2. **LOCATE:** Find the correct template. For a hearsay admission by the accused, you need Template 10. For a confession obtained after lengthy interrogation, Template 18. For expert evidence, Template 25. For s.276 sexual activity evidence, Template 15.
3. **APPLY:** Copy the IRAC structure. Replace every [PLACEHOLDER] with specific facts from the question. Every application paragraph must reference the specific facts — not just paraphrase the rule. The examiner rewards analysis, not description.

Placeholder Conventions

PLACEHOLDER	WHAT TO REPLACE WITH
[WITNESS]	The witness giving evidence at trial (e.g., 'Sam,' 'the complainant,' 'W').
[DECLARANT]	The person who made the out-of-court statement (may differ from [WITNESS]).
[ACCUSED]	The accused person in a criminal proceeding, or the defendant in a civil action.
[PARTY]	The party tendering or opposing the evidence (use in civil contexts).
[STATEMENT]	The specific out-of-court statement in issue (describe precisely).
[EVIDENCE]	The specific piece of evidence being challenged or tendered.
[PURPOSE]	The stated purpose for which the evidence is being tendered.
[PROCEEDING]	Whether the proceeding is criminal or civil — always state this explicitly.
[RESULT]	The outcome or consequence relevant to the analysis.

[EXPERT]

The proposed expert witness's name and field of claimed expertise.

⚠ EXAM TIP — THE NCA EVIDENCE EXAM IS OPEN-BOOK

Your advantage lies not in memorization but in rapid identification of issues and systematic application of the correct framework. The exam is 3 hours — Part A (approx. 30 MC questions, 60 marks) and Parts B–D (short-answer, 40+ marks). These templates give you the framework; the facts give you the content. Tab this document by Part. Always state whether the proceeding is criminal or civil — the rules differ.

Document Structure

PART	CONTENTS
A — Universal Starters	Templates 1–3: Master opener, Criminal vs Civil distinctions, W(D) Credibility Framework
B — Hearsay	Templates 4–11: Definition test, Principled Approach, KGB, Admissions, Dying Declarations, Spontaneous Utterances, State of Mind, Business Records
C — Character Evidence	Templates 12–15: Good Character, Similar Fact Evidence (Handy), Corbett Criminal Record, Rebuttal Character
D — Sexual Activity Evidence	Template 16: Section 276 CC — The Twin Myths and Three-Condition Test
E — Confessions	Templates 17–20: Oickle Voluntariness, Voir Dire Procedure, Section 10(b) Charter, Grant Section 24(2) Exclusion
F — Opinion Evidence	Templates 21–23: Lay Opinion (Graat), Expert Opinion (Mohan), Abbey Gatekeeper Function
G — Privilege	Templates 24–27: Solicitor-Client Privilege, Wigmore Case-by-Case, Third-Party Records (s.278 CC), Spousal Privilege
H — Witnesses & Cross-Examination	Templates 28–32: Competence/Compellability, Section 9 CEA Hostile Witness, Browne v Dunn, Prior Inconsistent Statements, Collateral Fact Rule
I — Fact-Finding & Civil	Templates 33–36: Vetrovec Warning, Eyewitness Identification, No Case to Meet (Arcuri), Civil Standard (FH v McDougall)

PART A

UNIVERSAL STARTERS

Template 1 — Master Problem Question Opener — Evidence Issues

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use at the start of ANY evidence short-answer question before analyzing the specific issue.

Establishes: (1) the proceeding type; (2) the evidence in dispute; (3) the analytical framework; (4) the burden on admissibility.

ISSUE

The issue is whether [EVIDENCE] — specifically [STATEMENT / ITEM / TESTIMONY] — is admissible in the [criminal / civil] proceeding against [ACCUSED / PARTY].

Alternative framings:

- The issue is whether [DECLARANT]'s out-of-court statement to [WITNESS] is admissible for the truth of its contents in the [Crown's / plaintiff's / defendant's] case.
- The issue is whether [EVIDENCE] must be excluded because it [is inadmissible hearsay / constitutes prohibited character evidence / violates s.276 CC / was obtained in breach of the Charter].
- The issue is the admissibility of [EVIDENCE] tendered by [the Crown / the defence / the plaintiff] for the purpose of [PURPOSE].

RULE

All evidence must first be RELEVANT — it must make a fact in issue more or less probable than it would be without the evidence. Relevance is the gateway to admissibility.

The universal three-question framework applies to every piece of evidence:

- (1) ADMISSIBILITY: Does an exclusionary rule apply? (Hearsay, character, opinion, privilege, s.276 CC, confessions rule.) If yes — does an exception permit admission?
- (2) PURPOSE / USE: For what purpose may the trier of fact use the evidence? Is a limiting instruction required?
- (3) WEIGHT: Even if admissible, how much weight should the trier of fact assign?

NOTE: On the NCA Evidence exam, the instructions state 'Assume all evidence is relevant and material' — do NOT spend marks analyzing relevance unless specifically asked. Proceed directly to the exclusionary rule.

APPLICATION FRAMEWORK**STEP 1: Identify the Proceeding Type and Its Consequences**

Because this is a [criminal / civil] proceeding, I will apply the [criminal / civil] rules of evidence.

[Criminal: The burden of proof is BARD and the accused has constitutional protections under the Charter. Civil: The standard is the balance of probabilities, no W(D) framework applies, and parties are generally compellable.] This distinction determines which rules govern [hearsay exceptions / character evidence / standard of proof / exclusionary discretion].

STEP 2: Identify the Evidence and the Party Tendering It

The evidence in issue is [EVIDENCE — describe precisely: 'the out-of-court statement made by [DECLARANT] to [WITNESS] in which [DECLARANT] stated [STATEMENT]']. This evidence is being tendered by [the Crown / the defence / the plaintiff / the defendant] for the purpose of [PURPOSE — e.g., 'proving the truth of its contents' / 'impeaching the credibility of [WITNESS]' / 'proving that

[ACCUSED] made a prior inconsistent admission'].

STEP 3: Identify the Applicable Exclusionary Rule

Because [EVIDENCE] is [an out-of-court statement offered for the truth of its contents → hearsay / evidence of prior bad conduct offered to show propensity → character / a statement by the accused to police → confessions rule / evidence of the complainant's prior sexual activity → s.276 CC / a communication between lawyer and client → privilege], the [hearsay / character / confessions / s.276 / privilege] exclusionary rule is engaged.

STEP 4: Identify the Exception and Apply

Proceed to the specific template for the exclusionary rule identified in Step 3. Apply the complete test from that template to the specific facts. Every element of the test must be addressed with the word 'because' linking the rule to the specific facts.

CONCLUSION

[EVIDENCE] [is / is not] admissible in the [criminal / civil] proceeding because [brief summary of why the exclusionary rule applies or does not / why the exception is satisfied or not]. [If admissible: The jury must be instructed / the trier of fact should be told that this evidence may only be used for [PURPOSE] and not for [prohibited purpose].] [If inadmissible: The prejudicial effect of admitting [EVIDENCE] substantially outweighs its probative value / no exception to the [rule] has been established.]

POTENTIAL EXAM SCENARIOS

1. Any evidence question where you need to frame the issue before diving into the specific rule.
2. Multi-part questions where several pieces of evidence each require separate IRAC analysis.
3. Questions where the proceeding type (criminal vs civil) affects which rules apply.
4. Questions where the purpose for which evidence is tendered determines admissibility.
5. Questions requiring you to address both admissibility AND the required limiting instruction.

Template 2 — Criminal vs Civil Evidence — Regime Identification

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use whenever the question involves a civil proceeding, or when you need to contrast civil and criminal rules.

Essential for: racial profiling civil suits, civil wrongful death actions, professional discipline proceedings, administrative tribunals.

The NCA Evidence sample exam tested civil evidence in Parts A and D — do NOT neglect civil rules.

ISSUE

The issue is whether the [civil / civil-criminal hybrid] nature of this proceeding affects the applicable

rules of evidence, and specifically whether [the standard of proof / the use of W(D) / the admissibility of a prior criminal acquittal or conviction / the right not to testify / the right to an adverse inference] differs from the criminal context.

TOPIC	CRIMINAL RULE	CIVIL RULE
Standard of Proof	Beyond a reasonable doubt (BARD) — Lifchus [1997]	Balance of probabilities (BOP) — FH v McDougall [2008]
W(D) Framework	YES — mandatory when accused testifies	NO — does not apply in civil proceedings
Accused / Party compellability	Accused NOT compellable for Crown (s.11(c) Charter)	Parties fully compellable by all sides
Adverse inference from silence	NOT permitted — s.11(c) Charter prohibits	YES — trier of fact may draw adverse inference from failure to testify or call evidence
Spousal compellability	Generally no — s.4 CEA (with exceptions for offences against spouse/children)	YES — spouses compellable in civil proceedings
Prior criminal ACQUITTAL	N/A	NOT binding — civil court can find same conduct occurred on BOP (Toronto v CUPE [2003])
Prior criminal CONVICTION	N/A	Admissible as evidence that person committed the act (provincial Evidence Acts s.22.1)
Charter s.24(2) exclusion	YES — Grant test applies to state Charter breaches	NOT directly applicable between private parties
Exclusionary discretion	Probative value substantially outweighs prejudicial effect	More limited — relevant evidence generally admitted
Hearsay standard	Principled approach: Khan/Khelawon	Same principled approach but broader statutory exceptions in provincial Evidence Acts
Res ipsa loquitur	Not applicable	Fontaine [1998]: inference of negligence from circumstances — no transfer of legal burden

APPLICATION — Criminal vs Civil Proceeding

STEP 1: Identify the Proceeding

Because this is a [civil / criminal] proceeding, the [civil / criminal] rules apply. [If civil: The standard of proof is the balance of probabilities (FH v McDougall). W(D) does not apply. Parties are compellable. Prior criminal acquittals do not bind this court.]

STEP 2: Address the Standard of Proof

[Criminal:] The Crown must prove every element BARD. The W(D) framework applies whenever [ACCUSED] testifies or there is defence evidence capable of raising a reasonable doubt. [Civil:] [PARTY] must prove their case on the balance of probabilities. There is only one standard — BOP —

regardless of the seriousness of the allegation (FH v McDougall). More serious or improbable allegations require more cogent evidence to meet the BOP standard — but the standard itself does not increase.

STEP 3: Address Any Prior Criminal Finding

[If prior acquittal in civil context:] Because [ACCUSED]'s prior criminal acquittal is not binding on this civil court (Toronto (City) v CUPE [2003]), this court may still find, on the balance of probabilities, that [ACCUSED] committed [the act]. The different standards of proof mean the two findings are not inconsistent. [If prior conviction in civil context:] Because [ACCUSED] was convicted of [offence] in criminal proceedings — which required proof BARD — that conviction is admissible as evidence in this civil proceeding that [ACCUSED] committed the act.

CONCLUSION

Because this is a [civil / criminal] proceeding, the applicable standard of proof is [BARD / BOP], and [W(D) applies / W(D) does not apply]. [If civil: The trier of fact [may / may not] draw an adverse inference from [PARTY]'s failure to [testify / call [WITNESS]].] [Proceed to the specific evidentiary rule at issue.]

POTENTIAL EXAM SCENARIOS

1. A racial profiling civil suit after criminal acquittal — standard of proof, prior acquittal, and adverse inference issues.
2. A civil wrongful death action following a criminal acquittal on the same facts.
3. A professional discipline proceeding applying a civil standard to conduct alleged in a criminal context.
4. A summary judgment motion where the court must determine whether to admit hearsay evidence on the civil standard.
5. A case where an employee was criminally convicted — employer uses the conviction as evidence in civil wrongful dismissal proceedings.

⚠ EXAM TIP — ALWAYS STATE THE PROCEEDING TYPE FIRST

This is the single most reliable mark-gaining reflex on the NCA Evidence exam. Every rule you state should be prefaced with 'In a criminal proceeding...' or 'In a civil proceeding...' where the rules differ. The sample exam tested civil evidence extensively in Parts A and D. Treating all evidence questions as purely criminal is a common and costly mistake.

Template 3 — W(D) Framework — Credibility Assessment in Criminal Cases

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use in ANY criminal case where the accused testifies or where defence evidence conflicts with the Crown's case.

Also use when a judge-alone criminal trial is being analyzed — W(D) logic is mandatory in reasons. This is one of the most tested concepts on the NCA Evidence exam — it appears in MC questions and short-answer questions.

ISSUE

The issue is how the trier of fact must apply the reasonable doubt standard when assessing the conflicting testimony of [ACCUSED] and the Crown's witnesses, and specifically whether the W(D) framework has been correctly applied.

Alternative framings:

- The issue is whether the trial judge erred by treating the case as a credibility contest between [ACCUSED] and [CROWN WITNESS], rather than applying the W(D) framework.
- The issue is how the jury/judge should reason when they are not sure whether to believe [ACCUSED] or [CROWN WITNESS].
- The issue is what direction the trial judge must give to the jury when [ACCUSED] testifies and their account conflicts with Crown witnesses.

RULE

R v W(D) [1991] 1 SCR 742: The trial of credibility question — 'who do I believe?' — is the WRONG approach. The jury must NOT choose between believing the Crown or believing the accused. The correct framework is the three-question analysis:

FIRST: If you BELIEVE the accused's evidence, you MUST ACQUIT.

SECOND: If you do NOT BELIEVE the accused's evidence, but you are LEFT IN REASONABLE DOUBT by it, you MUST ACQUIT.

THIRD: Even if you are NOT LEFT IN DOUBT by the accused's evidence, ask yourself: on the basis of the evidence you DO ACCEPT, are you satisfied BEYOND A REASONABLE DOUBT of guilt?

R v JHS [2008] SCC 30: W(D) applies in judge-alone trials. The judge need not use the exact W(D) words, but must follow the logic. Failure to do so in the reasons is reversible error.

The W(D) framework ALSO applies to third-party defence evidence (alibi witnesses, other defence witnesses) — not only the accused's own testimony.

APPLICATION FRAMEWORK**QUESTION 1: If You Believe the Accused**

Because [ACCUSED] testified that [summary of accused's account], and because there is no other evidence that is necessarily inconsistent with this account, if the trier of fact believes [ACCUSED]'s testimony, [ACCUSED] must be acquitted. The Crown's case depends on disproving [ACCUSED]'s account — if [ACCUSED]'s account is believed, the Crown has not proved guilt beyond a reasonable doubt.

QUESTION 2: If You Do Not Believe the Accused But Are Left in Doubt

Even if the trier of fact does not believe [ACCUSED]'s account in its entirety, because [identify the specific aspect of accused's evidence that might leave a doubt: e.g., 'the accused's claim that the encounter was consensual, though disbelieved, creates uncertainty about whether the Crown has eliminated all innocent explanations'], the trier of fact would be left in reasonable doubt and must acquit. The trier of fact is not required to choose sides — even partial doubt created by the accused's evidence is sufficient for acquittal.

QUESTION 3: On the Evidence Accepted — Is BARD Established?

Even setting aside [ACCUSED]'s testimony entirely, on the basis of the Crown's evidence that is accepted — specifically [identify key Crown evidence: e.g., 'the testimony of [CROWN WITNESS] describing [ACT]' and 'the forensic evidence showing [RESULT]'] — the trier of fact must ask: Is the Crown's case, standing alone, sufficient to establish guilt beyond a reasonable doubt? [On these facts: The Crown's evidence [does / does not] establish each element BARD because [analysis].]

CONCLUSION

Applying the W(D) framework: [Question 1: If [ACCUSED]'s evidence is believed → acquit, because [brief reason]. / Question 2: Even if not believed, [ACCUSED]'s evidence leaves a reasonable doubt because [brief reason] → acquit. / Question 3: On the Crown's evidence alone, [BARD is / is not] established because [brief reason].] [Overall conclusion: [ACCUSED] would likely be [acquitted / convicted] because [W(D) question X produces the determinative answer on these facts].]

POTENTIAL EXAM SCENARIOS

1. Any criminal case where the accused testifies — apply W(D) whenever credibility is in issue.
2. A judge-alone criminal trial where the judge's reasons are challenged as applying a credibility contest approach.
3. A case with an alibi witness — W(D) applies to the alibi evidence as well as the accused's testimony.
4. A domestic violence case where the complainant recanted — W(D) applies to the accused's denial and the recanted testimony.
5. A short-answer question asking how the trial judge should charge the jury on credibility.
6. An MC question asking which framework applies when the accused and the complainant give conflicting accounts.

⚠ EXAM TIP — W(D) IS MANDATORY IN CRIMINAL CASES

Whenever the accused testifies or defence evidence conflicts with the Crown's case, state W(D) and its three questions. Do not paraphrase — name the three questions explicitly. In the exam, a short-answer answer about credibility that does not mention W(D) will lose marks. Remember: W(D) does NOT apply in civil proceedings (FH v McDougall [2008]).

PART B

HEARSAY EVIDENCE

Template 4 — Is This Hearsay? — The Definition Test

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use FIRST before any hearsay analysis — to confirm whether the evidence is hearsay at all. Many evidence questions involve statements that LOOK like hearsay but are not offered for the truth of their contents.

Common exam trick: a statement offered to prove notice, verbal act, or effect on listener — NOT hearsay.

ISSUE

The issue is whether [DECLARANT]'s statement — '[STATEMENT]' — constitutes hearsay and is therefore presumptively inadmissible.

Alternative framings:

- The issue is whether [DECLARANT]'s out-of-court statement is being offered for the truth of its contents, or for a non-hearsay purpose.
- The issue is whether the statement '[STATEMENT]' is a verbal act / operative words / effect on listener, and thus not hearsay.

RULE

An out-of-court statement is hearsay if and only if BOTH conditions are met:

- (1) The statement was made OUTSIDE the current proceedings — not from the witness stand at this trial; AND
- (2) It is tendered to prove the TRUTH OF ITS CONTENTS — i.e., to establish that what was said actually reflects reality.

If either condition is missing, the statement is NOT hearsay.

NON-HEARSAY purposes (the statement is admissible if offered for these purposes only):

- VERBAL ACTS: Words that legally constitute the act itself (a threat, an offer, acceptance of a contract). Truth is irrelevant — the words were spoken, that is the legally operative fact.
- EFFECT ON LISTENER: Offered to prove the listener had knowledge, notice, or a particular state of mind — not to prove the truth of what was said.
- VERBAL CONDUCT: Non-assertive conduct (pointing, nodding) — not a 'statement' at all.
- TO PROVE THE STATEMENT WAS MADE: Where the mere fact of making the statement is relevant (e.g., to show the accused said something inconsistent with innocence in terms of behaviour, not truth).

APPLICATION FRAMEWORK

STEP 1: Identify the Statement

The statement in issue is [STATEMENT], made by [DECLARANT] to [WITNESS / police / other] on [date / occasion]. This statement was made outside the current trial proceedings and is now being tendered through [WITNESS]'s testimony about what [DECLARANT] said.

STEP 2: Identify the Purpose for Which It Is Tendered

Because [the Crown / the defence / [PARTY]] is tendering [STATEMENT] to [state the purpose: e.g., 'prove that the light was indeed red' / 'prove that [ACCUSED] was present at the scene' / 'prove the effect on [WITNESS], who had notice of the danger'], I must determine whether this purpose requires the statement to be TRUE.

STEP 3: Apply the Two-Part Definition

[If offered for truth:] Because [STATEMENT] is being offered to prove [the specific fact the statement asserts], and because this requires the trier of fact to accept the truth of [DECLARANT]'s assertion, the statement IS hearsay. The hearsay exclusionary rule is engaged. Proceed to Template 5 (principled approach) or the applicable traditional exception.

CONCLUSION

[DECLARANT]'s statement [IS / IS NOT] hearsay because [it is / is not] being offered for the truth of its contents. [If hearsay: It is presumptively inadmissible, and [the Crown / the defence / [PARTY]] must establish an applicable exception.] [If not hearsay: It is admissible for the [non-hearsay purpose]. A limiting instruction is required: the trier of fact may use this statement only to establish [non-hearsay purpose] and not as proof that [what was asserted is true].]

POTENTIAL EXAM SCENARIOS

1. An officer testifying that an informer told them a crime was planned — offered to explain why they attended the location, not to prove the crime was planned. NOT hearsay.
2. A witness testifying that they heard 'I'll kill you if you testify' — verbal threat. NOT hearsay for the truth of the statement — it IS the threat (verbal act).
3. A witness testifying that the victim told them the brake lines had been cut — offered to show the victim had notice, not to prove the brake lines were cut. NOT hearsay for notice purpose.
4. A police officer testifying that a dying victim named the accused — offered to prove the accused committed the crime (truth of contents). HEARSAY → apply dying declaration exception (Template 8).
5. A witness who testifies 'I heard him say he was in Chicago' — offered to prove the accused was in Chicago. HEARSAY.

⚠ EXAM TIP — CHECK THE PURPOSE BEFORE LABELLING HEARSAY

The most common MC hearsay mistake is labelling every out-of-court statement as hearsay without checking the purpose. Always ask: 'Does the tendering party need this statement to be TRUE to achieve their purpose?' If no → not hearsay. If yes → hearsay. The NCA sample exam (Q7) tested this directly with an adoptive admission scenario.

Template 5 — Principled Approach to Hearsay — Necessity and Reliability**IRAC TEMPLATE****USE THIS TEMPLATE WHEN:**

Use when hearsay evidence is sought to be admitted but no traditional categorical exception applies. Also use when a traditional exception needs to be supplemented or where the court must rely on Khan/Khelawon.

The foundational modern hearsay test — every hearsay analysis must address this framework.

ISSUE

The issue is whether [DECLARANT]'s out-of-court statement — '[STATEMENT]' — is admissible for

the truth of its contents under the principled approach to hearsay established in *R v Khan* [1990] and refined in *R v Khelawon* [2006].

Alternative framings:

- Whether [STATEMENT] satisfies the requirements of necessity and threshold reliability sufficient to be admitted as an exception to the hearsay rule.
- Whether [STATEMENT] should be admitted on a principled basis notwithstanding that it does not fall within a traditional categorical hearsay exception.

RULE

R v Khan [1990] 2 SCR 531 — Established the principled approach: hearsay may be admitted when NECESSITY and RELIABILITY are established.

R v Smith [1992] 2 SCR 915 — Extended the principled approach to all declarants (not only children).

R v Khelawon [2006] 2 SCR 787 — Definitive SCC case. THRESHOLD reliability (not ultimate reliability) is the standard. Reliability can be PROCEDURAL or SUBSTANTIVE.

TWO REQUIREMENTS (both on the balance of probabilities, proved by the party seeking admission at a voir dire):

NECESSITY: The original declarant cannot give the evidence in the ordinary way (from the witness stand, under oath, subject to cross-examination). Grounds: death, physical/mental inability to testify, beyond jurisdiction, privilege, no independent memory, or RECANTATION (practical unavailability — *R v B(KGB)* [1993]).

RELIABILITY — PROCEDURAL: The circumstances under which the statement was made provide an adequate substitute for the safeguards of oath, presence, and cross-examination. Examples: statement under oath, warning about consequences of lying, statement was videotaped (allows trier to assess declarant's demeanour).

RELIABILITY — SUBSTANTIVE: The circumstances surrounding the making of the statement provide adequate assurance of trustworthiness. Examples: spontaneous statement (no time to fabricate), against declarant's interest, no motive to fabricate at the time, corroborated by independent evidence, consistent with known facts.

RESIDUAL DISCRETION: Even where necessity and reliability are established, the judge may exclude if probative value is substantially outweighed by prejudicial effect.

APPLICATION FRAMEWORK

STEP 1: Confirm Hearsay

Because [DECLARANT]'s statement — '[STATEMENT]' — was made outside the current proceedings to [WITNESS] on [occasion], and because [the Crown / the defence / [PARTY]] is tendering it to prove the truth of its contents (specifically, to prove [the fact asserted]), it is hearsay and presumptively inadmissible. No traditional categorical exception applies because [explain why]. I will therefore apply the principled approach.

STEP 2: Establish Necessity

Because [DECLARANT] [is deceased / is physically unable to testify due to [illness/injury] / is beyond the jurisdiction of this court / has no independent recollection of the events / has recanted and now

testifies inconsistently with the prior statement, creating practical unavailability (B(KGB))), necessity is [established / not established]. [If necessity is not established: The principled approach fails at the first stage and the statement is inadmissible.]

STEP 3: Establish Threshold Reliability — Procedural

As to PROCEDURAL reliability: Because [DECLARANT]'s statement [was / was not] made [under oath or affirmation / with a warning that false statements have consequences / while being videotaped, allowing the trier to assess demeanour / while subject to cross-examination at the preliminary inquiry], procedural reliability [is / is not] established. [If established: These circumstances provide an adequate substitute for the oath and cross-examination that would normally safeguard the evidence's reliability.]

STEP 4: Establish Threshold Reliability — Substantive (Alternative)

Alternatively / additionally, as to SUBSTANTIVE reliability: Because [DECLARANT]'s statement was made [spontaneously, without time for reflection or fabrication / against [DECLARANT]'s own interest, as it exposed [DECLARANT] to [criminal liability / financial loss] / before any litigation was anticipated and before [DECLARANT] had any motive to fabricate / with corroboration from [identify independent corroborating evidence]], the circumstances of the statement's making provide adequate assurance of trustworthiness.

STEP 5: Residual Discretion

Even though necessity and threshold reliability are [established], I must consider whether the residual discretion requires exclusion. Because the prejudicial effect of admitting [STATEMENT] [does / does not] substantially outweigh its probative value — specifically, because [the evidence is [central to / peripheral to] the case, and the [risk of misuse / risk of distortion] is [high / low]] — the residual discretion [supports / does not support] exclusion.

CONCLUSION

[DECLARANT]'s statement is [admissible / inadmissible] under the principled approach because [necessity: [DECLARANT] cannot testify in the ordinary way due to [ground]] AND [threshold reliability: [procedural: the statement was made under oath / videotaped] / [substantive: the circumstances (spontaneity / against interest / corroboration) provide adequate trustworthiness]]. [If admissible: The trier of fact must be instructed that this evidence was not tested by cross-examination, and appropriate weight must be assigned accordingly.]

POTENTIAL EXAM SCENARIOS

1. A deceased witness who gave a statement to police before dying — necessity: death; reliability: spontaneous, no motive to fabricate.
2. A child complainant who is too young to testify — Khan scenario; reliability based on circumstances of the statement's making.
3. A witness who has recanted at trial — practical unavailability; apply KGB conditions (Template 6) for truth admission.
4. A witness who is abroad and cannot be compelled — necessity established; reliability depends on circumstances.
5. A statement made in an email before any dispute arose — substantive reliability: no litigation motive.

△ EXAM TIP — THRESHOLD NOT ULTIMATE RELIABILITY

The most common error in hearsay analysis: requiring the proponent to PROVE the statement is true. That is not the test. The test is THRESHOLD reliability — is there sufficient basis to let the trier of fact consider it? The trier of fact then decides what weight to give. Khelawon [2006] is the authority. State this explicitly in your answer.

Template 6 — Prior Inconsistent Statements — The KGB Framework**IRAC TEMPLATE****USE THIS TEMPLATE WHEN:**

Use when a witness testifies inconsistently with a prior statement they made — and the party wants to admit the PRIOR statement for the truth of its contents (not just to impeach).

Critical distinction: Without KGB conditions → prior statement goes to CREDIBILITY only (impeachment). With KGB conditions → prior statement admissible for TRUTH.

This is a high-frequency exam topic — appears in criminal domestic violence, witness recantation, and gang-related scenarios.

ISSUE

The issue is whether [WITNESS]'s prior [videotaped / written / oral] statement to [police / counsel / other] is admissible for the truth of its contents, notwithstanding that [WITNESS] now testifies inconsistently at trial.

Alternative framings:

- Whether [WITNESS]'s recantation of their prior statement creates 'practical unavailability' sufficient to establish necessity under the principled approach.
- Whether the KGB conditions are met such that [WITNESS]'s prior statement can be used as substantive evidence rather than only to attack credibility.

RULE

R v B(KGB) [1993] 1 SCR 740 — THE RULE: A prior inconsistent statement (PIS) may be admitted for the TRUTH of its contents (not merely to impeach credibility) when the conditions of the principled approach are satisfied through the 'KGB conditions':

NECESSITY: [WITNESS]'s recantation or inconsistent trial testimony creates PRACTICAL UNAVAILABILITY of the prior evidence — the evidence the prior statement contains is now unavailable in the ordinary way.

RELIABILITY — PROCEDURAL (KGB conditions):

- (1) The statement was made UNDER OATH or solemn affirmation;
- (2) The making of the statement was VIDEOTAPED (or there is an equivalent reliable record);
- (3) The witness is available for CROSS-EXAMINATION at trial about the prior statement.

WITHOUT KGB conditions: The PIS is admissible only to impeach credibility under ss.10-11 CEA. The jury MUST be instructed: the prior statement can be used to assess whether the witness is

truthful, but NOT as proof of the facts it contains.

APPLICATION FRAMEWORK

STEP 1: Identify the Inconsistency

Because [WITNESS] previously stated [content of prior statement] and now testifies [inconsistent trial testimony], there is a material inconsistency between [WITNESS]'s prior statement and current evidence. Because this inconsistency renders the prior evidence practically unavailable, necessity is established.

STEP 2: Check KGB Conditions

CONDITION (1) — Under Oath: Because [WITNESS]'s prior statement [was / was not] made under oath or solemn affirmation, with an understanding that false statements have consequences, the oath condition [is / is not] met. [If not met: Consider whether a warning about consequences of lying provides a sufficient substitute.]

STEP 3: Determine Admissibility for Truth or Credibility Only

[IF ALL KGB CONDITIONS MET:] Because necessity and procedural reliability are established through the KGB conditions, [WITNESS]'s prior statement is admissible for the TRUTH of its contents. The trier of fact may accept the prior statement as proof of [what the prior statement asserts]. A limiting instruction is still recommended: the jury should consider why [WITNESS] is now testifying differently.

CONCLUSION

[WITNESS]'s prior statement [IS / IS NOT] admissible for the truth of its contents. [IF YES: The KGB conditions are met — the statement was [made under oath] and [videotaped] and [WITNESS is available to be cross-examined] — establishing necessity and procedural reliability under the principled approach.] [IF NO: The KGB conditions are not fully met because [which condition fails]. The prior statement is admissible only to impeach [WITNESS]'s credibility under s.[10/11] CEA. The jury must be instructed it cannot use the statement as proof of the facts stated therein.]

POTENTIAL EXAM SCENARIOS

1. A domestic violence complainant who gave a videotaped statement to police under oath but recants at trial — classic KGB scenario.
2. A gang-related witness who gave a videotaped statement identifying the accused but claims at trial not to remember.
3. A witness who made an oral statement to police (not videotaped, not under oath) — KGB conditions fail; prior statement for credibility only.
4. A witness who testified at a preliminary inquiry and now recants — prior sworn testimony under oath with cross-examination opportunity satisfies KGB.
5. An examination for discovery in civil proceedings — prior answers are admissible as admissions (Template 10) or PIS on cross-examination.

⚠ EXAM TIP — THE CRITICAL DISTINCTION

Without KGB: the jury hears 'Sam said something different before' — they can use this to disbelieve Sam, but NOT to find that what Sam said before is what actually happened. With KGB: the jury can use the prior statement as actual proof of the events described. This distinction is worth marks —

always state it explicitly and give the limiting instruction.

Template 7 — Party Admissions — Express, Adoptive, and Vicarious

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when the opposing party's own prior out-of-court statements are being tendered against them. Party admissions are NOT subject to the principled approach — they are admitted on the adversarial principle.
Critical for: accused's statements to friends, co-workers, or family; corporate defendant's internal documents; adoptive silence in specific circumstances.

ISSUE

The issue is whether [ACCUSED / PARTY]'s out-of-court statement — '[STATEMENT]' — is admissible as a party admission against [ACCUSED / PARTY].

RULE

A party's own out-of-court statements are admissible against that party as an exception to the hearsay rule — not on grounds of reliability but on the ADVERSARIAL PRINCIPLE: a party cannot complain about the use of their own words against them.

THREE TYPES OF ADMISSION:

1. EXPRESS (DIRECT) ADMISSION: The party's own words — oral or written — are admissible. No reliability threshold required. Examples: a confession, an email, a social media post, a statement to a friend.
2. ADOPTIVE ADMISSION: A party who, by words or conduct, ADOPTS another person's statement as their own. Silence can constitute adoption IF: (a) the party heard and understood the statement; (b) they had an opportunity to deny; AND (c) a denial would be natural in the circumstances. CRITICAL LIMIT: Silence during a POLICE INTERROGATION does NOT constitute an adoptive admission — the right to silence (s.7 Charter and s.10(b)) means the accused cannot be expected to respond.
3. VICARIOUS ADMISSION (Agent): Statements by an authorized agent acting within the scope of their authority bind the principal. In corporate cases: statements by officers or employees about matters within their authority bind the corporation.

R v Gordon 2022 ONCA 799: Adoptive admissions require careful analysis. The circumstances must genuinely call for a denial. Police interrogation silence ≠ adoptive admission.

MJL Enterprises v SAL Marketing 2025 ONCA 120: Civil admissions — same adversarial rationale applies.

APPLICATION FRAMEWORK

STEP 1: Identify the Type of Admission

[EXPRESS:] Because [ACCUSED / PARTY] personally made the statement '[STATEMENT]' [orally to [WITNESS] / in writing in [document]], this is a direct admission by [ACCUSED / PARTY] themselves. No reliability threshold applies. [ACCUSED / PARTY] cannot object to the use of their own words against them.

STEP 2: Address the Hearsay Issue

Because party admissions are not subject to the principled approach (Khan/Khelawon), I need not establish necessity or reliability. The adversarial rationale supports admission: [ACCUSED / PARTY] cannot exclude their own prior statements by characterizing them as hearsay. The admission is admissible as an exception to the general hearsay rule.

STEP 3: Identify Any Required Limiting Instruction

Because this admission is tendered by [the Crown / the plaintiff / the defendant] against [ACCUSED / PARTY], the trier of fact may use it as evidence of [the facts asserted / [ACCUSED/PARTY]'s knowledge / [ACCUSED/PARTY]'s state of mind]. [If the admission is also relevant to a limited purpose: The trier of fact must be instructed that the admission can be used for [purpose] but not for [prohibited purpose].]

CONCLUSION

[ACCUSED / PARTY]'s statement '[STATEMENT]' is admissible as a [express / adoptive / vicarious] party admission. Because [ACCUSED / PARTY] [made this statement personally / adopted this statement by [conduct]] / [the statement was made by [AGENT] within the scope of their authority], the adversarial principle supports admission without requiring proof of necessity or reliability. [The trier of fact may use this admission as evidence of [specific factual matter].]

POTENTIAL EXAM SCENARIOS

1. An accused's statement to a friend: 'I can't believe I got away with it' — express admission.
2. An accused who was present when an accomplice said 'we both did it' and the accused nodded — possible adoptive admission.
3. An accused questioned by police who said nothing — NOT an adoptive admission (right to silence).
4. A corporate defendant's internal emails discussing a known product defect — vicarious admissions by employees within their authority.
5. A civil defendant who signed a letter acknowledging liability before trial — express admission in civil proceedings (MJL Enterprises 2025).

⚠ EXAM TIP — ADMISSIONS ≠ CONFESSIONS

Party admissions and confessions are different rules. Admissions are admitted on the adversarial principle — no reliability test, no Crown burden to prove voluntariness. Confessions (Template 17) require the Crown to prove voluntariness BARD under Oickle. When the statement is made to police by the accused in a criminal case → ALWAYS apply the confessions rule first (Template 17). When the statement is made to a private party → party admission rules apply.

Template 8 — Dying Declarations

IRAC TEMPLATE**USE THIS TEMPLATE WHEN:**

Use when a homicide victim made a statement identifying their killer or describing the circumstances of their death before dying.

This exception applies in CRIMINAL proceedings only (homicide cases) at common law.

The conditions are strict — all four must be met.

ISSUE

The issue is whether [DECLARANT]'s statement — '[STATEMENT]' — is admissible as a dying declaration in this homicide proceeding.

RULE

At common law, a dying declaration is admissible in criminal homicide proceedings where ALL FOUR conditions are met:

(1) The declarant **KNEW THEY WERE DYING**: The declarant must have had a settled, hopeless expectation of imminent death — not merely a concern that they might die. Medical evidence alone is insufficient; there must be evidence the DECLARANT THEMSELVES believed death was certain and imminent.

(2) The declarant had **GIVEN UP ALL HOPE OF RECOVERY**: The declarant must have completely abandoned hope of survival. A declarant who believes there is even a slim chance of survival does not satisfy this condition.

(3) The statement relates to the **CAUSE OR CIRCUMSTANCES OF THE DEATH**: The content must be directly relevant to how the declarant came to be in their dying condition — who caused it and how. Peripheral matters do not qualify.

(4) The declarant would have been **COMPETENT TO TESTIFY**: The declarant must have been a competent witness at the time of making the statement — aware of events, able to communicate, not under the influence of medication that would impair testimony.

R v Nurse 2019 ONCA 260: The 'hopeless expectation of death' requirement is strictly applied. Paras 54–57, 66–76.

APPLICATION FRAMEWORK**STEP 1: Knowledge of Imminent Death**

Because [DECLARANT] [stated / indicated / demonstrated] that [they were dying / they had no hope of recovery] — specifically because [DECLARANT said 'I am not going to make it' / the medical team told [DECLARANT] the injuries were fatal / [DECLARANT] asked for last rites / other evidence of subjective belief] — [DECLARANT] had a settled, hopeless expectation of death. [If condition is questionable: There is [insufficient / adequate] evidence that [DECLARANT] subjectively believed death was certain. The exception [fails / is met] on this element.]

STEP 2: Relates to Cause of Death

Because [DECLARANT]'s statement — '[STATEMENT]' — directly identifies [the cause of death / the person who caused the injury / the circumstances in which [DECLARANT] was attacked], it relates to the cause and circumstances of [DECLARANT]'s death. [If statement also includes peripheral matters: Only the portion relating to the cause of death qualifies under the dying declaration exception; other portions must be analyzed separately.]

STEP 3: Competence

Because [DECLARANT] was [conscious / alert / coherent] at the time of making the statement — as evidenced by [DECLARANT's clear description / recognition of [WITNESS] / specific details provided] — [DECLARANT] would have been a competent witness at that time.

CONCLUSION

[DECLARANT]'s statement [IS / IS NOT] admissible as a dying declaration because all four conditions [are / are not] met: [DECLARANT] [had / did not have] a settled, hopeless expectation of death; the statement [relates / does not relate] to the cause of death; and [DECLARANT] [was / was not] competent to testify. [IF INADMISSIBLE AS DYING DECLARATION: Consider whether the principled approach (Template 5) applies — necessity is established by [DECLARANT]'s death; reliability must be assessed on the circumstances of the statement.]

POTENTIAL EXAM SCENARIOS

1. A shooting victim who regains consciousness briefly, names the shooter to a nurse, and then dies.
2. A stabbing victim who calls 911 and identifies the assailant, then dies before trial.
3. A victim who says 'If anything happens to me, tell the police it was [NAME]' months before dying — does NOT meet the dying declaration test (no settled expectation of imminent death).
4. A victim who is sedated and barely conscious when they make the statement — competence issue.

⚠ EXAM TIP — NECESSITY + DYING DECLARATION TOGETHER

Where a dying declaration fails on one technical condition, pivot to the principled approach (Template 5). Necessity is automatically established (the declarant is dead). Then assess reliability on the substantive circumstances: was the statement made without motive to fabricate? Is there corroboration? Courts have admitted statements that don't strictly qualify as dying declarations under the principled approach.

Template 9 — Spontaneous Utterances — Res Gestae Exception

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when an out-of-court statement was made spontaneously at or near the time of a startling event. The spontaneity of the statement — made while under the influence of the event — is what supplies the trustworthiness.

Both criminal and civil proceedings. Recent: R v RA 2024 ONCA 696.

ISSUE

The issue is whether [DECLARANT]'s statement — '[STATEMENT]' — made [during / immediately after] [the event], is admissible under the spontaneous utterances (res gestae) exception to the hearsay rule.

RULE

The spontaneous utterances exception (res gestae) admits out-of-court statements where:

- (1) A STARTLING OR UNUSUAL EVENT occurred that caused [DECLARANT] to be in a heightened emotional or physical state;
- (2) The statement was made SPONTANEOUSLY — [DECLARANT] was STILL UNDER THE INFLUENCE of the startling event when speaking, with no opportunity to reflect, fabricate, or compose a narrative;
- (3) The statement RELATED TO THE EVENT — it described, explained, or reacted to the startling event itself.

The rationale: A person in the grip of a startling event lacks the composure or time to fabricate — their statement is therefore a reliable reflection of their perception.

R v RA 2024 ONCA 696: The declarant must be in the 'grip' of the event — time elapsed and declarant's state of mind at the time of the statement are the key factors. Paras 6-7; 33-43.

APPLICATION FRAMEWORK**STEP 1: Identify the Startling Event**

Because [describe the event — e.g., 'the accident occurred,' 'the attack took place,' 'the accusation was made'], a startling and unusual event occurred that would cause [DECLARANT] to be in a heightened physical or emotional state.

STEP 2: Assess Spontaneity — Declarant Still Under the Influence

Because [DECLARANT]'s statement was made [immediately / within [time period] of the event], and because [DECLARANT] was [visibly distressed / crying / shaking / still at the scene / had not yet had time to compose a false narrative], [DECLARANT] was still under the influence of the startling event when making the statement. [If time has elapsed: The critical question is whether [DECLARANT] had the opportunity and composure to fabricate. Because [DECLARANT] was still disoriented / still at the scene / still reacting physically], the spontaneity is [preserved / not preserved].]

STEP 3: Statement Relates to the Event

Because [STATEMENT] directly [describes the attacker / explains what happened / identifies who caused the event / reacts to what was happening], it relates to the startling event and is therefore within the scope of the res gestae exception.

CONCLUSION

[DECLARANT]'s statement is [admissible / inadmissible] under the spontaneous utterances exception because [the required startling event occurred AND [DECLARANT] was still under its influence with no opportunity to fabricate AND the statement related to that event / [explain which condition fails and why]]. [If admissible: The statement is admitted for the truth of its contents. The trier of fact should consider whether [DECLARANT]'s state at the time supports or undermines its reliability as a

perception of events.]

POTENTIAL EXAM SCENARIOS

1. A car accident victim who, immediately upon impact, shouts 'The red car ran the light!' — classic res gestae.
2. An assault victim who, upon being helped to their feet, says 'He hit me from behind' — spontaneous, still under the event's influence.
3. A person who makes a statement 30 minutes after the event, after speaking to others — spontaneity is questionable; apply principled approach as alternative.
4. A 911 call made while an attack is in progress — strong res gestae case.

Template 10 — State of Mind / Present Intention Exception

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when a declarant's out-of-court statement expresses their then-existing mental state, intention, or emotional condition.

The statement is admissible to prove the STATE OF MIND — not the truth of any underlying fact described.

Classic use: 'I am afraid of X' — admissible to prove fear. 'I intend to go to Y' — admissible to prove intention.

ISSUE

The issue is whether [DECLARANT]'s statement — '[STATEMENT]' — is admissible under the state of mind exception to the hearsay rule to prove [DECLARANT]'s then-existing [intention / fear / mental state / plan / emotional condition].

RULE

Statements expressing a declarant's THEN-EXISTING state of mind, intention, plan, or emotional condition are admissible under this exception to prove that state of mind. The statement is not admitted to prove the truth of any underlying fact — only to prove the mental state.

KEY LIMITATION: The statement must reflect a PRESENT state, not a PAST event. 'I am afraid of John' → admissible to prove present fear. 'John threatened me last week' → hearsay (describes a past event — the truth of the threat must be established).

Briscoe Estate v Canadian Premier Life Insurance 2012 ONCA 854: Statements of present intention are admissible to prove those intentions. Paras 1-23; 52-57.

Samuel v Chrysler 2007 BCCA 431: Physical sensations — statements about present physical condition admissible to prove that condition (civil proceedings). Paras 1-2; 15; 23-40.

APPLICATION FRAMEWORK

STEP 1: Identify the Purpose

Because [the Crown / the defence / [PARTY]] is tendering [STATEMENT] to prove [DECLARANT]'s [fear of [ACCUSED] / intention to [act] / plan to [do something] / emotional state of [condition]] — and NOT to prove the truth of any historical fact described — the state of mind exception applies.

STEP 2: Confirm Present vs Past State

Because [DECLARANT]'s statement [describes their present state / says 'I am...' / says 'I intend to...' / says 'I plan to...'] — as opposed to describing a past event — it reflects [DECLARANT]'s THEN-EXISTING mental or emotional state. [If mixed: The portion that reflects [DECLARANT]'s present state of mind — '[relevant portion]' — is admissible under this exception. The portion describing past events — '[other portion]' — is hearsay and must be analyzed separately.]

STEP 3: Limiting Instruction

Because the state of mind exception admits this statement only to prove [DECLARANT]'s mental state — specifically [their fear / their intention / their plan] — and NOT to prove that [the past event described occurred / the historical fact asserted is true], a limiting instruction is required. The trier of fact must be told: '[STATEMENT]' can be used only to establish [DECLARANT]'s state of mind at the time; it cannot be used as proof that [underlying fact].

CONCLUSION

[DECLARANT]'s statement is admissible under the state of mind exception to prove [DECLARANT]'s then-existing [fear / intention / plan / emotional state]. Because the statement expresses [DECLARANT]'s PRESENT mental state and is not offered to prove the truth of any underlying fact, the hearsay concern is not engaged for this purpose. A limiting instruction is required: the trier of fact may use this statement only to establish [DECLARANT]'s state of mind, not as proof that [underlying fact alleged].

POTENTIAL EXAM SCENARIOS

1. A homicide victim who told a friend 'I am terrified of [ACCUSED]' shortly before death — admissible to prove fear, relevant to Crown's narrative.
2. A civil plaintiff who wrote in an email 'I intend to cancel the contract because of the defects' — admissible to prove intention, not to prove the defects existed.
3. A personal injury plaintiff who told their doctor 'I am in constant pain' — physical sensations exception (*Samuel v Chrysler*).
4. A deceased testator who said 'I plan to change my will' — admissible to prove intention; the changed will itself is needed for underlying fact.

Template 11 — Business Records Exception — Section 30 CEA**IRAC TEMPLATE****USE THIS TEMPLATE WHEN:**

Use when a document or record created in the ordinary course of business is being tendered as evidence.

Applies to: medical records, banking records, corporate records, employment records, police occurrence reports, electronic records.
 Section 30 CEA governs federal proceedings. Provincial evidence acts have parallel provisions.

ISSUE

The issue is whether [DOCUMENT / RECORD] is admissible as a business record under s.30 of the Canada Evidence Act (or the applicable provincial evidence act) as an exception to the hearsay rule.

RULE

Section 30 CEA (Business Records): A record made in the usual and ordinary course of business is admissible as evidence of facts recorded therein, provided:

- (1) The record was made in the USUAL AND ORDINARY COURSE OF BUSINESS — it is part of a regular system of record-keeping, not a special one-time document created for litigation;
- (2) It was the USUAL PRACTICE of the business to make such records;
- (3) The record was made AT OR NEAR THE TIME of the transaction or event it describes — contemporaneous recording;
- (4) The record was made by or from information TRANSMITTED BY a person with PERSONAL KNOWLEDGE of the event.

CRITICAL LIMIT — s.30(10) CEA: A business record is NOT admissible if it was made in the course of investigation or inquiry into a criminal, quasi-criminal, or disciplinary matter. Police occurrence reports created as part of a criminal investigation therefore do not qualify under s.30.

Electronic records: ss.31.1-31.8 CEA govern electronic documents and their authentication. A printout from a system operating properly is admissible as evidence of its contents.

APPLICATION FRAMEWORK

STEP 1: Usual and Ordinary Course of Business

Because [DOCUMENT] was created by [ORGANIZATION] as part of [their standard record-keeping system / their regular business practice of recording [transactions/events]], and because such records are routinely made in the ordinary course of [ORGANIZATION]'s business, the 'usual and ordinary course of business' condition is met. [If created for litigation: Because [DOCUMENT] was specifically created for this proceeding / was created during an investigation into criminal conduct, the s.30(10) exclusion applies and the record is not admissible under s.30.]

STEP 2: Contemporaneous Recording

Because [DOCUMENT] was made [at the time of / within [timeframe] of] the [transaction / event it records], it was made at or near the time of the events described, ensuring accuracy while the events were fresh.

STEP 3: Personal Knowledge

Because [the person who created / the person who transmitted the information in] [DOCUMENT] [was present at / had direct knowledge of] the [transaction / event], the personal knowledge requirement is satisfied. [For multi-person records: Each person in the chain of transmission must have had personal knowledge of the information they contributed to the record.]

CONCLUSION

[DOCUMENT] [IS / IS NOT] admissible as a business record under s.30 CEA because [all conditions are met / the s.30(10) exclusion applies / [which condition fails]]. [If admissible: The record is evidence of the facts recorded therein, but the trier of fact retains discretion to assign appropriate weight based on the circumstances of its creation.] [If not admissible under s.30: Consider the principled approach (Template 5) — necessity and reliability must be independently established.]

POTENTIAL EXAM SCENARIOS

1. Hospital medical records of treatment given to the plaintiff — classic business record.
2. Bank records showing transactions on the accused's account — business record.
3. A police report made during a criminal investigation — excluded by s.30(10) CEA.
4. An employer's standard employee review forms — business record if created in ordinary course; NOT if created in anticipation of discipline.
5. An electronic log from a computer system showing login times — ss.31.1-31.8 CEA electronic document provisions apply.

PART C

CHARACTER EVIDENCE

Template 12 — Good Character Evidence — Dual-Purpose Analysis

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when the accused tenders evidence of their own good character, or when Crown witnesses are cross-examined to elicit good character.

Good character evidence serves TWO purposes in criminal cases — both must be addressed.

Also use when the Crown seeks to rebut good character evidence after the accused has opened the door.

ISSUE

The issue is whether evidence of [ACCUSED]'s good character is admissible, for what purposes, and whether the Crown is entitled to rebut it.

RULE

In a CRIMINAL trial, the accused may adduce evidence of their own good character. Good character evidence serves TWO purposes:

- (1) CREDIBILITY PURPOSE: Good character makes it more likely [ACCUSED] is telling the truth when testifying. ONLY relevant if the accused testifies.
- (2) PROPENSITY PURPOSE (innocent conduct): Good character makes it less likely [ACCUSED] committed the offence charged — a person who has always been law-abiding and honest is less likely to have acted dishonestly or violently on this occasion. ALWAYS available, whether or not the accused testifies.

R v McNamara (No.1) [1981] ONCA: Good character evidence serves both purposes. Once the accused opens the door, the Crown may rebut.

CROWN REBUTTAL: Once [ACCUSED] puts good character in issue, the Crown may: (1) call witnesses to testify to [ACCUSED]'s bad reputation; (2) cross-examine [ACCUSED]'s character witnesses on specific incidents of bad conduct inconsistent with the character trait claimed.

LIMITING INSTRUCTION: The jury must be instructed how to use good character evidence for each purpose — for credibility (if accused testifies) AND for the propensity inference (innocent conduct).

APPLICATION FRAMEWORK

STEP 1: Identify How Good Character Is Being Raised

Because [ACCUSED] [testified to their own good character by stating / called [CHARACTER WITNESS] who testified that / cross-examined a Crown witness to elicit that] [ACCUSED] has a reputation for [honesty / peacefulness / law-abiding conduct] relevant to the charge of [offence], good character evidence is in issue.

STEP 2: Apply the Credibility Purpose

[If [ACCUSED] testified:] Because [ACCUSED] testified and put their credibility in issue, the evidence of good character for [honesty / truthfulness] is relevant to the credibility purpose. The trier of fact may consider [ACCUSED]'s good character as supporting an inference that [ACCUSED] is a truthful witness. [If [ACCUSED] did not testify: The credibility purpose does not arise; only the propensity purpose is available.]

STEP 3: Apply the Propensity Purpose

Because good character is relevant to the propensity purpose regardless of whether [ACCUSED] testified, the trier of fact may consider [ACCUSED]'s [reputation for honesty / law-abiding nature / peacefulness] as supporting an inference that [ACCUSED] is less likely to have [committed the fraud / assaulted [VICTIM] / [offence]] on this occasion. This inference is always available.

STEP 4: Crown Rebuttal (If Applicable)

Because [ACCUSED] has put their good character in issue by [method], the Crown is entitled to rebut. The Crown may [call [CHARACTER WITNESS] to testify to [ACCUSED]'s bad reputation for [trait] in the community / cross-examine [ACCUSED]'s character witness about whether they know of [specific incident inconsistent with claimed character]]. The jury must be instructed that the Crown's rebuttal goes to the credibility of [ACCUSED]'s character claim and to the weight of the propensity inference.

CONCLUSION

Evidence of [ACCUSED]'s good character is admissible and serves [both the credibility purpose (if [ACCUSED] testified) and the propensity (innocent conduct) purpose / only the propensity purpose (since [ACCUSED] did not testify)]. The jury must be instructed to consider good character: (1) as supporting the inference that [ACCUSED] is a truthful witness [if testified]; and (2) as supporting the inference that [ACCUSED] did not commit [the offence]. [If Crown rebuttal: The Crown may rebut by [method], and the jury must weigh the competing character evidence.]

POTENTIAL EXAM SCENARIOS

1. An accused charged with fraud who has worked in finance for 20 years with no complaints — reputation for honesty relevant to both purposes.
2. An accused charged with assault who testifies about their community volunteer work and peaceful nature — propensity purpose always available; credibility purpose because they testified.
3. Crown cross-examines accused's character witness: 'Did you know the accused was charged with theft in 2015?' — proper rebuttal cross-examination.
4. An accused who does not testify but calls a character witness — only the propensity purpose is available.

⚠ EXAM TIP — ALWAYS ADDRESS BOTH PURPOSES

Every good character analysis must address BOTH the credibility purpose AND the propensity (innocent conduct) purpose. State clearly which purpose is available on the facts (credibility requires testimony; propensity is always available). Failure to address both purposes will cost marks. The limiting instruction to the jury must cover both purposes separately.

Template 13 — Similar Fact Evidence — The Handy Test

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when the Crown seeks to admit evidence of the accused's prior bad conduct (other than the charge) to prove the charge, or to prove identity, intent, or absence of mistake.

The Handy test is the mandatory framework — all 5 steps must be addressed.

Also applies (with lower threshold) when the DEFENCE seeks to admit SFE about a THIRD PARTY (Template 14 — Racette).

ISSUE

The issue is whether evidence of [ACCUSED]'s prior conduct — specifically [describe prior conduct] — is admissible as similar fact evidence to prove [the offence charged / [ACCUSED]'s identity / [ACCUSED]'s intent / absence of mistake].

Alternative framings:

- Whether evidence that [ACCUSED] previously [prior bad act] is admissible to prove [ACCUSED] committed [current offence] on the basis of striking similarity.
- Whether the Crown's similar fact evidence application under Handy should be granted.

RULE

R v Handy [2002] 2 SCR 908 — THE SFE TEST: Evidence of prior bad conduct is admissible as similar fact evidence when its PROBATIVE VALUE SUBSTANTIALLY OUTWEIGHS its PREJUDICIAL EFFECT.

FIVE-STEP ANALYSIS:

(1) IDENTIFY THE NON-PROPENSITY PURPOSE: What specific issue beyond mere propensity does this evidence go to? Permissible purposes: identity (same MO), intent (prior acts show specific intent, not accident), actus reus (prior acts show event occurred, not accident), knowledge, absence of mistake. Vague purposes ('shows propensity for violence') are insufficient.

(2) ASSESS PROBATIVE VALUE (degree of similarity): How similar is the prior conduct to the conduct charged? The higher the degree of similarity — same MO, same victim type, same location, same unusual feature — the higher the probative value.

(3) ASSESS PREJUDICIAL EFFECT: (a) Moral prejudice: risk jury convicts on general bad character rather than this charge; (b) Reasoning prejudice: risk jury is distracted from the real issues.

(4) BALANCE: Probative value must SUBSTANTIALLY outweigh prejudicial effect. Close calls → exclusion.

(5) COLLUSION: Where there are multiple similar fact witnesses, assess whether an air of reality to collusion exists. Collusion destroys the probative value of the 'striking similarity.'

APPLICATION FRAMEWORK**STEP 1: Identify the Specific Non-Propensity Purpose**

Because the Crown seeks to admit evidence of [prior conduct] to prove [specific identified purpose — e.g., 'that [ACCUSED] acted with intent to [outcome], not by accident' / 'that [ACCUSED] is the person who committed [current offence] because of the distinctive MO used in both incidents'], the purpose is [identity / intent / actus reus / absence of mistake / knowledge]. This is a specific, non-propensity purpose that goes beyond the mere inference that '[ACCUSED] is the type of person who does this.'

STEP 2: Assess Probative Value

The degree of similarity between [prior conduct] and [current charge] is [high / moderate / low]. Specifically: [identify specific similarities — e.g., same victim type (young women he was in a relationship with), same setting (the accused's home), same conduct (refusal to accept refusal of consent), same progression of escalating force]. [If distinctive MO: The [specific unusual feature] is sufficiently distinctive that it goes beyond coincidence and constitutes a strong similarity.]

STEP 3: Assess Prejudicial Effect

The prejudicial effect of this evidence includes: (a) MORAL PREJUDICE — the jury may learn [ACCUSED] is a [description] and convict on that basis rather than on proof of the current charge; (b) REASONING PREJUDICE — the evidence may consume disproportionate trial time and distract the jury. [Assess magnitude: The evidence is [highly inflammatory / moderately prejudicial / relatively limited in prejudice] because [analysis].]

STEP 4: Balance Probative Value Against Prejudicial Effect

Because the probative value — measured by the striking degree of similarity [identify the specific similarities] — [substantially / does not substantially] outweighs the prejudicial effect, the evidence [should / should not] be admitted. [If admitted: The jury must be given a strict limiting instruction on the specific purpose for which the SFE is admitted and must be told they cannot use it for a general propensity inference.]

STEP 5: Collusion (If Multiple Similar Fact Witnesses)

[If applicable:] Because there [is / is not] an air of reality to collusion between the similar fact witnesses — specifically [they knew each other / there is evidence they communicated about this matter / the accounts are suspiciously identical] — the court must [hold a voir dire to determine whether collusion occurred / proceed on the basis that the similarities are genuine]. [If collusion: The probative value of the striking similarity is illusory and the evidence must be excluded.]

CONCLUSION

Evidence of [prior conduct] [IS / IS NOT] admissible as similar fact evidence. Because the degree of similarity [establishes a specific, non-propensity purpose of [purpose] AND the probative value substantially outweighs the prejudicial effect / does not establish sufficient similarity / is too prejudicial], the Handy test [is / is not] satisfied. [If admitted: The jury must be instructed that this evidence may be used only to establish [specific purpose] and not as proof that [ACCUSED] is generally the type of person who commits [offence type].]

POTENTIAL EXAM SCENARIOS

1. A sexual assault case where the accused used the same unusual technique with multiple complainants — identity / actus reus purpose.
2. An arson case where the accused previously attempted insurance fraud by fire — absence of mistake / intent.
3. A domestic violence case where the accused previously assaulted former partners with escalating control patterns.
4. A fraud case where the accused used the same false identity with multiple victims.
5. A defence application to admit SFE about a third party — apply Racette: s.7 Charter right to full answer and defence lowers the bar.

⚠ EXAM TIP — SUBSTANTIALLY OUTWEIGH — THE HIGH THRESHOLD

'Substantially outweigh' is a higher bar than the ordinary common law exclusionary discretion (which merely requires probative value to outweigh prejudicial effect). Where it is close — where a reasonable judge could go either way — the evidence should be excluded under Handy. This is an important and frequently tested point. State 'substantially' explicitly every time you apply this test.

Template 14 — Corbett Application — Criminal Record of Testifying Accused

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when the accused testifies and the Crown wants to cross-examine them on their prior criminal record.

Section 12 CEA allows it — but the trial judge has a discretion to exclude or sanitize the record. The Corbett application is made BEFORE the accused testifies — timing is crucial.

ISSUE

The issue is whether the Crown should be permitted to cross-examine [ACCUSED] on their prior criminal record — specifically [list convictions] — under s.12 CEA, and whether the trial judge should exercise discretion under R v Corbett [1988] to exclude or sanitize the record.

RULE

S.12 CEA: Where the accused testifies, they may be cross-examined on their prior criminal record. The record goes to CREDIBILITY only — not to propensity to commit the current offence.

R v Corbett [1988] 1 SCR 670: The trial judge has a RESIDUAL DISCRETION to exclude or sanitize the record where its prejudicial effect substantially outweighs its probative value on credibility.

FACTORS THE COURT WEIGHS IN CORBETT:

- (1) NATURE of the convictions: Crimes of DISHONESTY (fraud, perjury, theft, deceit) are MOST probative of credibility — the jury should know about these. Crimes of violence or drug offences are less probative of truthfulness.
- (2) SIMILARITY to the current charge: The more similar the prior conviction to the current charge, the GREATER the prejudice (risk of propensity misuse). Where they are identical, the court should lean toward excluding or sanitizing.
- (3) AGE of the convictions: Old convictions carry less weight and cause greater prejudice relative to probative value.
- (4) Whether [ACCUSED]'s credibility is GENUINELY IN ISSUE: If [ACCUSED]'s credibility is critical to the case, the jury has a greater right to know about the record.

MANDATORY LIMITING INSTRUCTION: Where the record is admitted, the judge MUST instruct the jury that the record goes only to credibility — whether [ACCUSED] is a trustworthy witness — and NOT to propensity to commit this offence.

APPLICATION FRAMEWORK

STEP 1: Identify the Record

Because [ACCUSED]'s criminal record includes [list convictions with dates and offences], I must assess the probative value of each conviction on credibility against its prejudicial effect.

STEP 2: Assess Each Conviction

[CONVICTION 1 — e.g., fraud, 2019:] Because fraud is a crime of dishonesty, it is directly probative of [ACCUSED]'s credibility as a witness. The jury has a legitimate interest in knowing that [ACCUSED] has been convicted of a crime involving deception. Because this conviction [is / is not] similar to the current charge of [current offence], the risk of propensity misuse is [high / low]. On balance, this conviction [should / should not] be admitted.

STEP 3: The Limiting Instruction

Because [ACCUSED]'s record [is / is not] being admitted (in whole or in part), the jury must be

instructed: [ACCUSED]'s [prior conviction(s) for [offence(s)]] may be considered only in assessing whether [ACCUSED] is a credible and reliable witness. These convictions cannot be used to infer that because [ACCUSED] has committed crimes before, [ACCUSED] probably committed [current offence]. The prohibited use is propensity reasoning.

CONCLUSION

The Corbett application is [granted / denied] with respect to [which convictions]. Because [crimes of dishonesty / similar prior convictions / old convictions] [should be admitted / should be excluded / should be sanitized], the Crown [may / may not] cross-examine [ACCUSED] on [which portions of the record]. A mandatory limiting instruction must be given: the record goes only to credibility, not to propensity.

POTENTIAL EXAM SCENARIOS

1. An accused charged with fraud who has a prior fraud conviction — highly probative on credibility, but similar to current charge — court must weigh carefully.
2. An accused charged with assault who has prior convictions for theft and perjury — perjury and theft are dishonesty crimes (admit); assault (exclude or sanitize due to similarity).
3. An accused with only very old convictions (15+ years ago) — low probative value; may be excluded.
4. A case where the accused's credibility is the central issue (their word vs. the complainant's) — greater weight toward admission.

⚠ EXAM TIP — CORBETT TIMING + LIMITING INSTRUCTION

The Corbett application is made BEFORE the accused takes the stand. If defense forgets, the accused is exposed to the full s.12 cross without Corbett protection. Always state: (1) the application is made before testimony; (2) the judge weighs the four factors; (3) a mandatory limiting instruction must accompany any admitted record. Both the Corbett analysis AND the limiting instruction are worth marks.

Template 15 — Third-Party Similar Fact Evidence — Defence Application (Racette)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when the DEFENCE (not the Crown) seeks to admit similar fact evidence about a THIRD PARTY to suggest the third party, not the accused, committed the offence.

The Handy framework applies — but the accused's s.7 Charter right to make full answer and defence tips the balance toward admission.

Saskatchewan v Racette 2020 SKCA 2 is the key authority.

ISSUE

The issue is whether [ACCUSED] should be permitted to adduce evidence of [THIRD PARTY]'s prior conduct — specifically [describe conduct] — as similar fact evidence to support the inference that [THIRD PARTY], not [ACCUSED], committed [the offence charged].

RULE

Saskatchewan v Racette 2020 SKCA 2: The Handy framework applies to defence SFE applications about third parties, but with a crucial difference — the accused's constitutional right to make full answer and defence under s.7 Charter weighs HEAVILY in favour of admission.

THE MODIFIED BALANCE FOR DEFENCE SFE:

- The accused bears a LOWER threshold than the Crown under Handy.
- The accused need not establish that the PV 'substantially' outweighs PE to the same degree the Crown must. The right to make full answer and defence means courts should lean toward admission of relevant defence evidence unless the prejudice is disproportionate.
- The specific purpose must still be identified (not mere propensity) — e.g., identity, motive, opportunity.

APPLICATION FRAMEWORK**STEP 1: Identify the Purpose**

Because [ACCUSED] seeks to admit evidence of [THIRD PARTY]'s prior conduct to prove [THIRD PARTY]'s identity as the true perpetrator / [THIRD PARTY]'s motive / [THIRD PARTY]'s pattern of conduct making it more likely [THIRD PARTY] committed this offence], the purpose is [identity / motive / pattern of conduct]. This is a specific, non-propensity purpose in support of [ACCUSED]'s defence.

STEP 2: Assess Similarity and Probative Value

The degree of similarity between [THIRD PARTY]'s prior conduct and the current offence is [high / moderate]. Specifically: [identify similarities]. Because [these similarities constitute a distinctive pattern / the MO is sufficiently unusual to be probative], the evidence has meaningful probative value on the defence theory that [THIRD PARTY], not [ACCUSED], is responsible.

STEP 3: Apply the Modified Balance — s.7 Charter

Because this is a DEFENCE application — not a Crown SFE application — [ACCUSED]'s right under s.7 Charter to make full answer and defence weighs in favour of admission (Racette). Unlike Crown SFE applications, [ACCUSED] need not establish that probative value 'substantially' outweighs prejudice to the same degree. The question is whether the evidence is sufficiently relevant to [ACCUSED]'s defence to justify admission, balanced against any legitimate prejudice to the administration of justice.

CONCLUSION

The defence application to adduce third-party similar fact evidence [IS / IS NOT] granted. Because [the similarity between [THIRD PARTY]'s prior conduct and the current offence is [sufficient / insufficient]] AND because [ACCUSED]'s s.7 Charter right to make full answer and defence [weighs in favour of admission / is outweighed by the risk of distorting the trial], this evidence [should / should not] be admitted. [If admitted: The jury must be instructed that this evidence is relevant only to [THIRD PARTY]'s possible involvement and cannot be used as proof of [ACCUSED]'s innocence without further analysis.]

POTENTIAL EXAM SCENARIOS

1. An accused who claims the victim was killed by a known violent third party with a similar MO.

2. An accused charged with fraud who argues a known co-conspirator was solely responsible, and seeks to admit evidence of the co-conspirator's identical frauds against others.
3. An accused who claims a third party planted evidence — seeks to admit evidence of third party's prior conduct of planting evidence.

PART D

SEXUAL ACTIVITY EVIDENCE — SECTION 276 CC

Template 16 — Sexual Activity Evidence — Section 276 CC (The Twin Myths Test)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use in ANY criminal case involving sexual offences where the defence seeks to admit evidence of the complainant's prior sexual activity (with the accused or with third parties).

Section 276 CC establishes a specific procedure and three conditions — ALL must be satisfied.

Key 2024 authority: R v TWW 2024 SCC 19. Also: R v Reimer 2024 ONCA 519.

ISSUE

The issue is whether evidence of [the complainant]'s prior sexual activity — specifically [describe the activity] — is admissible under s.276(2) of the Criminal Code, and whether the defence has established the three conditions necessary for its admission.

Alternative framings:

- Whether evidence of [the complainant]'s prior sexual history is being offered through the prohibited 'twin myth' reasoning and is therefore excluded by s.276(1) CC.
- Whether the in camera procedure under s.276.2 CC has been properly followed to determine admissibility.

RULE

S.276(1) CC — THE GENERAL EXCLUSION (THE TWIN MYTHS): Evidence of the complainant's sexual activity other than the subject matter of the charge is INADMISSIBLE if offered to support the inference that:

- (a) By reason of the sexual nature of the activity, the complainant is more likely to have consented to the activity at issue (CONSENT MYTH); OR
- (b) By reason of the sexual nature of the activity, the complainant is less worthy of belief (CREDIBILITY MYTH).

R v TWW 2024 SCC 19: The court must ask WHY the defence is offering this evidence. If the inference runs through either twin myth → s.276(1) EXCLUDES it. If the relevance is based on a

legitimate non-myth purpose → apply s.276(2).

S.276(2) CC — CONDITIONAL ADMISSIBILITY: Evidence of sexual activity IS admissible where ALL THREE conditions are met:

- (1) The evidence relates to a SPECIFIC INSTANCE or instances of sexual activity;
- (2) The evidence is RELEVANT to a specific issue at trial (other than through twin myth reasoning);
- (3) The PROBATIVE VALUE of the evidence is NOT SUBSTANTIALLY OUTWEIGHED by the danger of prejudice to the proper administration of justice.

R v Seaboyer [1991]: Constitutional backdrop. The current s.276 was enacted in response to Seaboyer.

R v Reimer 2024 ONCA 519: In camera procedure is mandatory. Trial judge must specifically identify the purpose and apply each condition.

APPLICATION FRAMEWORK

STEP 1: Identify the Evidence and the Claimed Purpose

Because the defence seeks to admit evidence that [the complainant] [describe the sexual activity — e.g., 'had a prior sexual relationship with [ACCUSED]' / 'engaged in consensual sexual activity with [THIRD PARTY] on [date]'], I must determine whether this evidence is being offered through twin myth reasoning or for a legitimate non-myth purpose.

STEP 2: Apply Section 276(1) — Twin Myth Analysis

CONSENT MYTH TEST: Is the defence's purpose to suggest that because [the complainant] consented before / engaged in sexual activity before, she is more likely to have consented to the activity that is the subject of the charge? If yes → s.276(1)(a) EXCLUDES the evidence.

STEP 3: Apply Section 276(2) — Three Conditions

CONDITION (1) — Specific Instance: Because the evidence relates to [a specific instance of sexual activity on [date/occasion]], this condition is [met / not met]. General reputation evidence does not qualify.

STEP 4: Procedure

Because a s.276 application requires: (1) written notice to the Crown specifying the evidence and the issue; (2) an IN CAMERA hearing (jury and public excluded; the complainant has standing to participate and make submissions); (3) a ruling by the judge specifying the permitted purpose; and (4) sealing of the hearing record — these procedural requirements [have / have not] been followed. [R v Reimer 2024: Failure to conduct proper in camera analysis is reversible error.]

CONCLUSION

Evidence of [the complainant]'s prior sexual activity [IS / IS NOT] admissible under s.276(2) CC. [If excluded: The evidence is being offered through [twin myth: consent/credibility] reasoning and s.276(1) excludes it.] [If admitted: All three s.276(2) conditions are met — the evidence is a specific instance, relevant to [specific issue] beyond the twin myths, and its probative value is not substantially outweighed by prejudice. The in camera procedure must be followed and the jury must be instructed on the specific permitted purpose — the evidence may only be used to establish [purpose] and cannot be used to infer that [the complainant] consented or is less credible because of her prior sexual

history.]

POTENTIAL EXAM SCENARIOS

1. Prior sexual history with the accused — offered to suggest consent — EXCLUDED by s.276(1)(a): the consent myth.
2. Prior sexual activity to explain physical injuries — legitimate non-myth purpose: may satisfy s.276(2).
3. Prior sexual activity to provide an innocent explanation for DNA or physical evidence found on the complainant.
4. Evidence that the complainant made similar false allegations against others — not about sexual activity, but may engage different rules.
5. Prior sexual activity with the accused offered to show the complainant had a motive to fabricate — requires careful s.276(2) analysis.

△ EXAM TIP — ASK WHY — THE TWO-STEP S.276 ANALYSIS

The TWW [2024] approach: Step 1 — WHY is the defence offering this? Does the inference run through a twin myth? If yes → s.276(1) excludes. Step 2 — If there is a legitimate non-myth purpose: apply s.276(2)'s three conditions. This two-step analysis (twin myth → if no myth → three conditions) is the current law and must be applied explicitly. State TWW 2024 as your authority.

PART E

CONFESSIONS RULE

Template 17 — Voluntary Confessions Rule — The Oickle Framework

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use whenever an accused's statement to police or another person in authority is sought to be admitted by the Crown.

The voluntariness inquiry is always required — even for exculpatory statements the Crown uses to show the accused was lying.

Apply ALL FOUR Oickle grounds, then Charter s.10(b) separately (Template 19).

ISSUE

The issue is whether [ACCUSED]'s statement to [police officer / person in authority] — made on [date / occasion] — was voluntary, such that it is admissible under the common law confessions rule.

Alternative framings:

- Whether the Crown can prove BARD that [ACCUSED]'s statement was not the product of

inducements, oppression, an absent operating mind, or police trickery.

- Whether [ACCUSED]'s statement should be excluded as involuntary under R v Oickle [2000].

RULE

Common Law Confessions Rule: A statement made by an accused to a PERSON IN AUTHORITY is admissible ONLY if the Crown proves BEYOND A REASONABLE DOUBT that it was VOLUNTARY.

PERSON IN AUTHORITY: A person the accused reasonably believed could affect their prosecution or treatment. Police officers, Crown prosecutors, and their agents. Test: SUBJECTIVE belief of the accused, checked against objective reasonableness. (R v Grandinetti [2005] SCC 5)

R v Oickle [2000] 2 SCR 3 — FOUR GROUNDS OF INVOLUNTARINESS (totality of circumstances):

GROUND 1 — INDUCEMENTS: Threats or promises that were sufficiently strong that they would cause a reasonable person in the accused's circumstances to speak when they otherwise would not. Both explicit and implicit inducements count.

GROUND 2 — OPPRESSION: Interrogation conditions so oppressive that the accused's will was overborne. Factors: length of detention, denial of sleep/food/water, physical discomfort, sustained psychological pressure, vulnerability of the accused (youth, mental disorder, intoxication, intellectual disability).

GROUND 3 — OPERATING MIND: The accused must have understood the nature of what they were saying and the consequences of making a statement. Severe intoxication, exhaustion, or mental disorder may negate the operating mind.

GROUND 4 — POLICE TRICKERY / ABUSE OF PROCESS: Even if technically voluntary, a confession may be excluded where police conduct was so offensive to human dignity that admission would bring the administration of justice into disrepute. Classic example: undercover officer eliciting statements after accused invoked right to silence (R v Hebert [1990]).

R v Ordonio 2025 ONCA 135: The Reid Technique (confrontational interrogation, false evidence claims, minimization/maximization tactics) is not per se exclusionary — but combined with oppressive conditions and vulnerable accused, it can constitute Ground 2 (oppression) or Ground 4 (trickery).

APPLICATION FRAMEWORK

STEP 1: Person in Authority

Because [ACCUSED]'s statement was made to [OFFICER / person], who is [a police officer / a Crown agent / a person the accused reasonably believed could affect their prosecution], the confessions rule applies. [ACCUSED] [did / did not] subjectively believe [the person] could influence their treatment, and that belief was [objectively reasonable / not objectively reasonable] because [analysis — Grandinetti].

STEP 2: Ground 1 — Inducements

Because [OFFICER] [stated / suggested / implied] [describe inducement — e.g., 'that things would go better for [ACCUSED] if they cooperated' / 'that [ACCUSED] could go home after making a statement' / 'that the Crown would seek a reduced charge in exchange for a statement'], I must assess whether this constitutes an inducement sufficient to render the statement involuntary. [Assess whether the

inducement would cause a reasonable person to speak when they otherwise would not.] [If no inducement: Because [OFFICER]'s statements were [describe: 'limited to factual questions without any promises or threats'], no inducement is made out on this ground.]

STEP 3: Ground 2 — Oppression

Because [ACCUSED] was [detained for [duration] / denied access to food and water / questioned in the [early hours of the morning / extreme conditions] / subjected to sustained psychological pressure through [tactics] / is [young / has a mental health condition / was intoxicated]], I must assess whether the conditions constitute oppression. [R v Ordonio 2025: If the Reid Technique was used — specifically [confrontational presentation of false evidence / sustained maximization and minimization], assess this in combination with the accused's circumstances.] [Was [ACCUSED]'s will overborne by the cumulative effect of these conditions?]

STEP 4: Ground 3 — Operating Mind

Because [ACCUSED] [was / was not] [severely intoxicated / exhausted after [hours] without sleep / suffering from an undiagnosed mental disorder / had just been administered strong medication], I must assess whether [ACCUSED] had an operating mind — understanding the nature and consequences of making a statement. [If operating mind is intact: Because [ACCUSED] [responded coherently / provided specific details / asked about their options], [ACCUSED] understood what they were saying and its consequences.]

STEP 5: Ground 4 — Police Trickery / Abuse of Process

Because [OFFICER] [used an undercover agent after [ACCUSED] invoked the right to silence / made fundamentally offensive misrepresentations designed to overwhelm [ACCUSED]'s free will / [other conduct]], I must assess whether this amounts to a 'dirty trick' that would bring the administration of justice into disrepute. [Note: Lying about evidence alone (e.g., 'we have your DNA') is generally NOT sufficient for this ground — the deception must be fundamentally unfair in a way that shocks community standards.]

STEP 6: Voir Dire and Standard

Because the Crown must prove voluntariness BEYOND A REASONABLE DOUBT, and because the analysis of the four Oickle grounds must consider the TOTALITY OF CIRCUMSTANCES — not each ground in isolation — [identify whether BARD is met on the cumulative picture]. [Procedure: The Crown leads evidence at a voir dire (jury excused). [ACCUSED] may testify — that testimony is protected and cannot be used against [ACCUSED] at the main trial.]

CONCLUSION

[ACCUSED]'s statement [IS / IS NOT] voluntary. Because [the Crown [has / has not] established BARD that [Ground 1: no inducements / Ground 2: no oppression / Ground 3: operating mind present / Ground 4: no police trickery]], the statement [is / is not] admissible under the common law confessions rule. [If excluded: [ACCUSED]'s statement must be excluded. The Crown cannot use it at trial. Consider separately whether Charter s.10(b) was also violated (Template 19) — if so, also run the Grant s.24(2) analysis (Template 20).]

POTENTIAL EXAM SCENARIOS

1. A 9-hour interrogation with no food, water, or sleep — oppression (Ground 2) argument.

2. An officer who says 'Tell us what happened and you can go home tonight' — potential inducement (Ground 1).
3. A mentally ill accused questioned without medication — operating mind (Ground 3) issue.
4. An undercover officer placed in the accused's cell after the accused invoked right to silence — abuse of process (Ground 4) → Hebert.
5. A Reid Technique interrogation with a vulnerable youth — Ordonio 2025: assess combined effect of all circumstances.

⚠ **EXAM TIP — BARD IS THE STANDARD FOR VOLUNTARINESS**

The Crown must prove voluntariness **BEYOND A REASONABLE DOUBT** — not on the balance of probabilities. This is a high bar. If there is a reasonable doubt about whether any one of the four Oickle grounds is made out, the statement is inadmissible. State this standard explicitly in your answer. Then run through all four grounds — examiners reward systematic analysis.

Template 18 — Voir Dire Procedure — Confessions

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when you need to explain the procedure for challenging the admissibility of a confession.
The voir dire is a 'trial within a trial' conducted outside the jury's presence.
A short but frequently tested procedural question — know the mechanics cold.

ISSUE

The issue is whether [ACCUSED]'s statement to police is admissible, and what procedural steps must be taken to determine its admissibility under the common law confessions rule.

RULE

VOIR DIRE PROCEDURE (Criminal Cases — Confessions):

- (1) JURY EXCLUDED: The jury is excused. The judge determines admissibility alone.
- (2) CROWN LEADS EVIDENCE: The Crown calls witnesses (typically the interrogating officer) to establish voluntariness BARD.
- (3) ACCUSED MAY TESTIFY: If [ACCUSED] testifies at the voir dire, that testimony is PROTECTED — it cannot be used against [ACCUSED] at the main trial for any purpose (including for impeachment).
- (4) JUDGE RULES: The judge determines on the evidence whether voluntariness is established BARD. If yes → statement is admitted. If no → excluded.
- (5) RULE OF COMPLETENESS: If the statement is admitted, ALL of it goes in — the Crown cannot cherry-pick incriminating portions and exclude exculpatory ones. The complete statement is before the trier of fact.
- (6) EDITING: The judge may redact portions that are irrelevant or unfairly prejudicial (e.g., references to other criminal acts), but must balance completeness against prejudice.

APPLICATION

VOIR DIRE STEP: Apply the Procedure

Because [ACCUSED]'s statement is challenged on voluntariness grounds, the trial judge must hold a voir dire. The jury is excused. The Crown must call [OFFICER] to testify about the circumstances of the interrogation and establish that the statement was obtained voluntarily. [ACCUSED] may testify — if they do, their testimony about the circumstances of the interrogation is protected and cannot be used at the main trial. The judge will then apply the Oickle four grounds (Template 17) to determine whether voluntariness is established BARD.

COMPLETENESS: The Rule of Completeness

If the statement is admitted, the rule of completeness requires that the ENTIRE statement goes before the trier of fact. Because [ACCUSED] also made [exculpatory statements / statements denying involvement / statements explaining their actions] in the same conversation, the Crown cannot admit only the incriminating portions. [ACCUSED]'s denials and explanations are also before the trier of fact. [Note: The trier of fact decides what weight to give to the exculpatory portions — the accused cannot rely on their own exculpatory statements as proof of the facts asserted therein, but the jury must hear the full picture.]

CONCLUSION

The trial judge must hold a voir dire (jury excluded) to determine whether [ACCUSED]'s statement was voluntary BARD under Oickle. [ACCUSED] may testify at the voir dire — their testimony is protected. If the statement is admitted, the rule of completeness requires the full statement to be placed before the trier of fact, including any exculpatory portions.

Template 19 — Section 10(b) Charter — Right to Counsel in Interrogation**IRAC TEMPLATE****USE THIS TEMPLATE WHEN:**

Use when the accused was not informed of or denied access to counsel before or during police questioning.

This is one of the most serious Charter breaches in the interrogation context — courts regularly exclude confessions obtained in violation of s.10(b).

Always analyze s.10(b) IN ADDITION to Oickle voluntariness — they are separate analyses.

ISSUE

The issue is whether [ACCUSED]'s right under s.10(b) of the Charter to retain and instruct counsel without delay was violated when [OFFICER] [failed to inform [ACCUSED] of the right to counsel / continued questioning after [ACCUSED] requested a lawyer / denied [ACCUSED] a reasonable opportunity to contact a lawyer].

RULE

S.10(b) Charter: Everyone has the right on arrest or detention to retain and instruct counsel without delay and to be informed of that right.

TWO COMPONENTS OF S.10(b):

- (1) INFORMATIONAL: Police must inform the accused of the right to counsel upon arrest or detention.
- (2) IMPLEMENTATIONAL: Once the accused invokes the right, police must (a) cease questioning; (b) provide the accused with a reasonable opportunity to contact counsel; and (c) not take any steps to elicit incriminating information until the accused has had a reasonable opportunity to consult.

R v Manninen [1987] 1 SCR 1233: Police must stop questioning the moment the accused requests a lawyer. Any statement obtained after a request for counsel and before the opportunity to consult is obtained in breach of s.10(b).

DUTY COUNSEL: The accused must be given information about available duty counsel and other legal assistance. Access to a specific lawyer is not required — access to ANY qualified legal advice satisfies the requirement.

WAIVER: The accused may waive the right to counsel — but waiver must be clear, unequivocal, and informed.

REMEDY: A s.10(b) violation does not automatically exclude the evidence — the Grant s.24(2) test applies (Template 20). However, s.10(b) violations are consistently treated as SERIOUS violations that weigh heavily toward exclusion under Grant Line 1 and Line 2.

APPLICATION FRAMEWORK**STEP 1: Was There a Detention or Arrest?**

Because [ACCUSED] was [arrested / detained at a roadside stop / told they were not free to leave / placed in a police vehicle], [ACCUSED] was [arrested / detained] within the meaning of s.10 Charter. Section 10(b) rights were therefore triggered immediately upon [arrest / detention].

STEP 2: Was the Informational Duty Met?

Because [OFFICER] [did / did not] inform [ACCUSED] of the right to retain and instruct counsel without delay [and the existence of duty counsel where applicable], the informational component of s.10(b) [was / was not] met. [If not met: [ACCUSED] was not aware of the right to counsel when questioned — a clear s.10(b) violation.]

STEP 3: Was the Implementational Duty Met?

Because [ACCUSED] [requested counsel / said 'I want a lawyer'] at [time], and because [OFFICER] [continued questioning before [ACCUSED] had a reasonable opportunity to contact a lawyer / denied [ACCUSED] access to a phone / proceeded with the interrogation despite the request], the implementational component of s.10(b) [was / was not] met. [Manninen: Questioning must cease the moment the right is invoked.] [If met: Because [ACCUSED] was given [time] to contact [lawyer / duty counsel] and did so before questioning continued, the implementational duty was satisfied.]

STEP 4: Proceed to Grant s.24(2)

Because a s.10(b) violation has been established, [ACCUSED]'s statement was obtained in breach of the Charter. I must now apply the Grant s.24(2) three-line balancing test (Template 20) to determine whether the statement should be excluded. Courts consistently treat s.10(b) violations as serious Charter breaches — both because of the deliberate nature of failing to honour the right to counsel (Grant Line 1) and because of the impact on the accused's right to make an informed choice about

whether to speak (Grant Line 2).

CONCLUSION

[ACCUSED]'s s.10(b) Charter right [was / was not] violated because [OFFICER] [failed to inform [ACCUSED] of the right to counsel / continued questioning after [ACCUSED] requested a lawyer]. Because this is a Charter violation, the statement's admissibility must be determined under s.24(2) of the Charter using the Grant three-line balancing test (Template 20).

Template 20 — Section 24(2) Charter — Grant Test for Exclusion of Evidence

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use whenever evidence was obtained in violation of a Charter right and the accused seeks exclusion. Most commonly used with: s.8 (unlawful search), s.9 (arbitrary detention), s.10(b) (right to counsel), s.10(a) (right to be informed of reasons). Grant replaced the old Collins/Stillman framework. Always cite Grant [2009].

ISSUE

The issue is whether [EVIDENCE] obtained in breach of [ACCUSED]'s [s.8 / s.9 / s.10(b)] Charter right should be excluded under s.24(2) of the Charter on the ground that admission would bring the administration of justice into disrepute.

RULE

S.24(2) Charter: Where evidence was obtained in a manner that infringed any rights under the Charter, it shall be excluded if its admission would bring the administration of justice into disrepute.

R v Grant [2009] 2 SCR 353 — THREE-LINE BALANCING TEST:

LINE 1: SERIOUSNESS OF THE CHARTER-INFRINGING CONDUCT

- Deliberate, wilful, or systemic violations → weight toward exclusion
- Good faith errors, technical breaches → weight toward admission
- Question: Would admission send a message that courts condone state misconduct?

LINE 2: IMPACT ON CHARTER-PROTECTED INTERESTS OF THE ACCUSED

- Serious invasion of privacy (s.8) or bodily integrity → weight toward exclusion
- CONSCRIPTED evidence (accused compelled to provide evidence against themselves — confessions, breath samples) → treated more seriously than DISCOVERED evidence (drugs found in a search)
- Minimal intrusion → weight toward admission

LINE 3: SOCIETY'S INTEREST IN ADJUDICATION ON THE MERITS

- Reliable evidence of a serious offence → weighs toward admission

- Unreliable evidence or evidence of minor offences → weighs toward exclusion
- Long-term view: Would a reasonable person aware of all the circumstances view exclusion as necessary to maintain confidence in the justice system?

R v Harrison [2009] 2 SCR 494: Applies Grant to an arbitrary roadside stop. Despite good faith, the seriousness of the privacy invasion led to exclusion.

APPLICATION FRAMEWORK

LINE 1: Seriousness of Charter-Infringing Conduct

Because [OFFICER]'s conduct — [describe: 'continuing to question [ACCUSED] after they requested counsel' / 'conducting a warrantless search without any legal justification' / 'detaining [ACCUSED] without reasonable suspicion in a discriminatory manner'] — was [deliberate and targeted / a good faith error / systemic], this line weighs [toward exclusion / toward admission]. [Deliberate violation: Because [OFFICER] [ignored [ACCUSED]'s clear request for counsel / proceeded knowing no warrant was required / acted with reckless disregard for Charter rights], the violation is at the serious end of the spectrum.]

LINE 2: Impact on Charter-Protected Interests

Because [EVIDENCE] consists of [a statement conscripted from [ACCUSED] after violation of the right to counsel / drugs discovered in a search of [ACCUSED]'s [vehicle / home] / [ACCUSED]'s bodily samples], the impact on [ACCUSED]'s Charter-protected interests is [serious / moderate / minor]. [Conscripted evidence: Because [EVIDENCE] is a statement [ACCUSED] was induced to make after their right to counsel was denied, this is classic conscripted evidence — [ACCUSED] was compelled to contribute to their own prosecution. This weighs heavily toward exclusion.] [Discovered evidence: Because [EVIDENCE] existed independently of the Charter breach, its impact on [ACCUSED]'s interests is less severe — though the privacy invasion must still be weighed.]

LINE 3: Society's Interest in Adjudication on the Merits

Because [EVIDENCE] is [reliable / highly probative / the sole evidence / peripheral], and because the offence charged is [serious / relatively minor], society's interest in having this case decided on the merits [is strong / is moderate / does not override the Charter concerns]. [If serious offence: Society has a strong interest in not allowing serious criminal charges to be decided without key evidence. However, this interest cannot be allowed to systematically erode Charter protections.]

BALANCE: Balancing the Three Lines

On balance, Lines 1 and 2 [strongly favor / somewhat favor] exclusion because [the violation was deliberate AND [ACCUSED]'s right to counsel was denied at a fundamental moment], while Line 3 [favors / does not clearly favor] admission because [the offence is serious / the evidence is reliable]. Taking the long-term view: a reasonable person aware of all the circumstances [would / would not] conclude that admitting this evidence would bring the administration of justice into disrepute.

CONCLUSION

[EVIDENCE] [IS / IS NOT] excluded under s.24(2) Charter. Applying the Grant three-line test: [Line 1: the Charter violation was [serious / not serious]; Line 2: the impact on [ACCUSED]'s Charter interests was [serious / minor]; Line 3: society's interest in adjudication on the merits [supports / does not clearly support] admission.] On balance, admitting [EVIDENCE] [would / would not] bring the

administration of justice into disrepute, and it [is / is not] excluded.

POTENTIAL EXAM SCENARIOS

1. A confession obtained after s.10(b) was violated — conscripted evidence, Line 2 weighs heavily toward exclusion.
2. Drugs found in an unconstitutional vehicle search — discovered evidence, Line 3 (serious offence) may tip toward admission.
3. An arbitrary roadside stop (systemic racial profiling) — even if officer acted in good faith, Line 1 and Line 2 may favour exclusion (Harrison).
4. A technical s.8 violation where the officer believed they had a valid warrant — good faith, Line 1 favors admission.

PART F

OPINION EVIDENCE

Template 21 — Lay Opinion Evidence — The Graat Framework

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when a non-expert witness is giving opinion evidence (e.g., about speed, intoxication, emotional state, age, identity).

Lay opinion is admissible when the opinion is a natural, inseparable part of reporting the witness's perception.

Key: The 'composite observation' principle — when separating facts from conclusion would be artificial.

ISSUE

The issue is whether [WITNESS]'s opinion that [describe opinion — e.g., 'the driver appeared to be impaired' / 'the vehicle was travelling approximately 100 km/h' / 'the accused appeared angry and threatening'] is admissible as lay opinion evidence.

RULE

R v Graat [1982] 2 SCR 819: Lay witnesses may give opinion evidence where the opinion is:

- (1) RATIONALLY BASED on the witness's own first-hand perceptions — what they actually saw, heard, or experienced;
- (2) HELPFUL to a clear understanding of the witness's testimony or a fact in issue — the opinion conveys something that cannot easily be conveyed by listing each specific observation separately;
- (3) NOT based on specialized knowledge beyond the average person — otherwise, expert evidence is

required.

THE COMPOSITE OBSERVATION PRINCIPLE: Where the underlying facts cannot practically be separated from the overall impression or conclusion (e.g., 'he was drunk' rather than trying to list every specific physical observation), the lay opinion is admissible. The overall impression IS the evidence.

APPLICATION FRAMEWORK

STEP 1: Rationally Based on First-Hand Perception

Because [WITNESS] [personally observed [ACCUSED] / was present at the scene / directly interacted with [ACCUSED]], and because [WITNESS]'s opinion that [describe opinion] is based on [WITNESS]'s own observations — specifically [describe the underlying observations: e.g., 'slurred speech, unsteady gait, glassy eyes, smell of alcohol'], the first-hand perception requirement is met.

STEP 2: Helpful to Understanding

Because conveying the overall impression — '[describe opinion]' — is more helpful and more accurately reflects [WITNESS]'s experience than attempting to list each individual physical observation separately, and because requiring [WITNESS] to describe every component observation would be artificial and would not convey the same overall picture, this opinion is helpful to the trier of fact.

STEP 3: No Specialized Knowledge Required

Because [the assessment of a person's level of intoxication / the estimation of a vehicle's speed / the identification of a person / the assessment of another person's emotional state] is within the experience and capacity of an ordinary person without specialized training, this does not require expert qualification. [If specialized knowledge IS required: [WITNESS] is not qualified as an expert and this opinion exceeds lay opinion — expert qualification under Mohan is required (Template 22).]

CONCLUSION

[WITNESS]'s opinion that [describe opinion] IS admissible as lay opinion evidence. All three Graat conditions are met: the opinion is rationally based on [WITNESS]'s first-hand observations, it is helpful to understanding [WITNESS]'s testimony, and it does not require specialized knowledge beyond the ordinary person. [Any weight concerns — such as the subjectivity of the observation or [WITNESS]'s opportunity to observe — go to weight, not admissibility.]

Template 22 — Expert Opinion Evidence — The Mohan Four-Part Test

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use whenever a party seeks to call an expert witness to give opinion evidence.
All FOUR Mohan criteria must be satisfied before the evidence is admitted.
Then apply the Abbey gatekeeper function (Template 23).

ISSUE

The issue is whether [EXPERT]'s proposed opinion evidence — that [describe opinion] — is admissible under the four-part test in *R v Mohan* [1994].

RULE

R v Mohan [1994] 2 SCR 9 — FOUR-PART TEST FOR EXPERT EVIDENCE:

- (1) **RELEVANCE:** The evidence must be relevant to a material issue in the proceeding AND must satisfy a basic cost-benefit analysis (probative value vs. risks).
- (2) **NECESSITY:** The evidence must provide information outside the experience and knowledge of the average trier of fact. The expert must **ASSIST** the jury — not usurp their fact-finding function.
- (3) **ABSENCE OF EXCLUSIONARY RULE:** No other rule of evidence excludes this evidence.
- (4) **PROPERLY QUALIFIED EXPERT:** The witness must have specialized knowledge, skill, training, or experience in the relevant field.

CRITICAL LIMIT — USURPING THE JURY: An expert **CANNOT** testify that the accused 'fits the profile' of an offender, that the complainant 'must be telling the truth,' or on the ultimate question of guilt/innocence. This usurps the jury's function.

R v Trochym [2007] SCC 6: Novel science must have established reliability — courts scrutinize the methodology, not just the credentials.

JN v CG 2023 ONCA 77: Expert must be independent and objective — primary duty to the court, not the retaining party.

APPLICATION FRAMEWORK**CRITERION 1: Relevance**

Because [EXPERT]'s opinion evidence about [subject area] is [directly relevant to / makes more probable] [the specific issue in dispute — e.g., 'whether the physical injuries are consistent with the account given by the complainant' / 'the cause of the fire'], and because this relevance goes to a material fact in issue in this proceeding, the relevance criterion is met. [Basic cost-benefit: The probative value of this expert evidence [outweighs / does not outweigh] its risks, specifically [identify any risks].]

CRITERION 2: Necessity

Because [the subject of [EXPERT]'s opinion — e.g., 'the dynamics of coercive control in intimate relationships' / 'the pathology of the deceased's injuries' / 'the reliability of eyewitness testimony under high stress'] is outside the ordinary knowledge and experience of an average juror, and because [EXPERT]'s testimony would assist the jury in understanding this evidence rather than simply directing them to a conclusion, the necessity criterion is met. [If necessity questionable: The jury [is / is not] capable of assessing [subject] without expert assistance, because [analysis].]

CRITERION 3: No Exclusionary Rule

Because [EXPERT]'s opinion evidence [does not violate / is not excluded by] any other specific exclusionary rule — it is not inadmissible hearsay, is not privileged, and does not fall within the character evidence prohibitions — the third criterion is met.

CRITERION 4: Properly Qualified

Because [EXPERT] holds [qualifications: e.g., 'a PhD in forensic pathology,' 'twenty years of clinical experience in the treatment of domestic abuse survivors,' 'is a licensed forensic engineer with specific experience in fire investigation'], [EXPERT] has the specialized knowledge, skill, training, and experience necessary to give the proposed opinion. [If qualification is challenged: The trial judge will hold a voir dire to assess whether [EXPERT]'s qualifications are sufficient for this specific opinion — general expertise does not automatically extend to specialized sub-areas.]

CONCLUSION

[EXPERT]'s proposed opinion evidence [SATISFIES / DOES NOT SATISFY] all four Mohan criteria: [relevance: probative value established; necessity: outside jury's knowledge; no exclusionary rule; properly qualified]. [If all four met: Proceed to the Abbey gatekeeper analysis (Template 23) to determine whether the evidence should nonetheless be excluded on a cost-benefit basis.] [If any criterion fails: [EXPERT]'s evidence is inadmissible.]

Template 23 — Expert Evidence — The Abbey Gatekeeper Function**IRAC TEMPLATE****USE THIS TEMPLATE WHEN:**

Use AFTER the Mohan test is satisfied (Template 22) to assess whether the expert evidence should still be excluded.

The gatekeeper function is a second-stage cost-benefit analysis focused on the RISKS of the expert evidence.

Key risks: usurping the jury, unreliable methodology, oath-helping, advocate-expert bias (JN v CG 2023).

ISSUE

The issue is whether, having satisfied the Mohan threshold (Template 22), [EXPERT]'s opinion evidence should nonetheless be excluded under the Abbey gatekeeper function because its risks outweigh its probative value.

RULE

R v Abbey 2009 ONCA 624: TWO-STAGE FRAMEWORK — Stage 1: Mohan threshold. Stage 2: Gatekeeper function — does probative value substantially outweigh the risks?

GATEKEEPER RISKS TO ASSESS:

(a) **USURPING THE JURY'S FUNCTION:** Does the opinion on the ultimate issue direct the jury rather than assist them? An expert who says 'the accused is guilty' or 'the complainant is telling the truth' or 'the accused fits the profile of an abuser' has usurped the jury's function.

(b) **UNRELIABLE METHODOLOGY:** Is the opinion based on a scientifically valid and reliable methodology? R v Trochym [2007] SCC 6: Hypnotically refreshed memory is excluded because the methodology creates false memories that the subject sincerely believes are real — unreliable at the source.

(c) **OATH-HELPING:** R v J(JL) [2000] SCC: An expert on child interview reliability is excluded when

offered to support the credibility of a child witness — this usurps the jury's credibility assessment function.

(d) **LACK OF INDEPENDENCE:** JN v CG 2023 ONCA 77: An expert who has abandoned objectivity and is acting as an advocate for the retaining party may be excluded or given minimal weight.

(e) **DISPROPORTIONATE TIME:** Expert evidence that would consume excessive trial time relative to its contribution.

APPLICATION FRAMEWORK

GATEKEEPER ANALYSIS: Apply the Gatekeeper Function

[Usurping jury:] Because [EXPERT]'s proposed testimony [goes to the ultimate issue of guilt / directly assesses the credibility of [WITNESS] / tells the jury that [ACCUSED] 'fits the profile'], it risks [usurping the jury's function of determining [guilt/credibility] / substituting the expert's judgment for the jury's on the core question in the case]. [J(JL): Where expert testimony on child witness credibility is offered, the court must assess whether this crosses the line from providing context to directing a verdict on credibility.]

CONCLUSION

[EXPERT]'s opinion evidence [SHOULD / SHOULD NOT] be excluded under the Abbey gatekeeper function. Because [the opinion [does / does not] usurp the jury's function / the methodology [is / is not] sufficiently reliable / [EXPERT] [is / is not] adequately independent (JN v CG 2023)], the gatekeeper analysis [requires exclusion / permits admission]. [If admitted: The trier of fact must be instructed that [EXPERT] is there to assist, not to direct a verdict, and that the opinion should be weighed alongside all other evidence.]

POTENTIAL EXAM SCENARIOS

1. A child interview specialist who testifies the child's account is 'consistent with a child who has been abused' — classic oath-helping/J(JL) scenario.
2. A criminal profiler who says 'the accused fits the profile of a serial offender' — usurps jury's function.
3. A forensic expert who used hypnosis to refresh the witness's memory before trial — Trochym: methodology excludes.
4. A defence-retained expert who uncritically adopts every defence theory and overstates conclusions — JN v CG 2023: lack of independence.

PART G

PRIVILEGE

Template 24 — Solicitor-Client Privilege — Class Privilege and Its Exceptions

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use whenever a communication between a lawyer and their client is sought to be admitted in evidence.

SCP is a near-absolute class privilege — much stronger than Wigmore case-by-case privilege.

Key exceptions: crime-fraud, innocence at stake (McClure), public safety (Smith v Jones).

ISSUE

The issue is whether [the communication between [LAWYER] and [CLIENT]] is protected by solicitor-client privilege and whether any exception applies to permit its disclosure.

RULE

Solicitor-Client Privilege (SCP) is a near-absolute class privilege protecting confidential communications between a lawyer and client made for the dominant purpose of obtaining or giving legal advice.

THREE CONDITIONS FOR SCP:

- (1) Confidential communication between lawyer and client
- (2) For the dominant purpose of obtaining or giving LEGAL ADVICE (not business advice)
- (3) In the context of a professional legal relationship

HOLDER: The CLIENT. Only the client can waive — not the lawyer unilaterally.

DURATION: Survives the termination of the retainer. Survives the client's death.

THREE RECOGNIZED EXCEPTIONS:

1. CRIME-FRAUD EXCEPTION: SCP does not protect communications made in furtherance of a crime or fraud. A client cannot use the lawyer-client relationship as a tool for criminal activity.
2. INNOCENCE AT STAKE (R v McClure [2001] 1 SCR 445): Two-stage test: (Stage 1) Is there an evidentiary basis for concluding the information is NECESSARY for the accused's full answer and defence — not merely helpful? (Stage 2) In camera review by the judge of the privileged material to confirm necessity. NARROW exception.
3. PUBLIC SAFETY (Smith v Jones [1999] 1 SCR 455): The privilege yields when: (a) the threatened harm is SERIOUS (risk of death or serious bodily harm); (b) the threat is to an IDENTIFIABLE person or group; (c) the risk is CREDIBLE and IMMINENT.

APPLICATION FRAMEWORK**STEP 1: Establish SCP**

Because [the communication was made between [LAWYER] and [CLIENT]] in the context of [their professional legal relationship], and because [the communication concerned legal advice about [matter] / [CLIENT] was seeking legal guidance on [issue]], and because the communication was made in confidence, the three conditions of SCP are met. [LAWYER]'s notes / [CLIENT]'s instructions / [describe the communication] are prima facie protected by SCP.

STEP 2: Assess Whether an Exception Applies

[Crime-Fraud:] Because [CLIENT]'s communication [did / did not] seek [LAWYER]'s assistance in [committing fraud / carrying out a crime], the crime-fraud exception [does / does not] apply. [The communication is protected only if made in seeking legitimate legal advice — not in planning criminal activity.]

CONCLUSION

The communication [IS / IS NOT] protected by SCP. [If protected: No exception is applicable because [the harm is not sufficiently imminent / the innocence at stake exception is not met — necessity is not established / the communication did not facilitate a crime]. [If not protected: The [crime-fraud / innocence at stake / public safety] exception applies because [specify conditions met], and the communication may be disclosed to the extent necessary for [that purpose].]

Template 25 — Case-by-Case Privilege — The Wigmore Criteria**IRAC TEMPLATE****USE THIS TEMPLATE WHEN:**

Use when a relationship that is NOT automatically privileged by class (not lawyer-client, not spousal) may still attract privilege on the specific facts.

Common examples: journalist-source, mediator-parties, therapist-patient, social worker-client.

The party asserting privilege must satisfy ALL FOUR Wigmore criteria.

ISSUE

The issue is whether the communications between [PARTY] and [OTHER PARTY] attract case-by-case privilege under the Wigmore criteria, and whether disclosure should be ordered.

RULE

WIGMORE FOUR CRITERIA (all four must be satisfied — party asserting privilege bears the burden):

- (1) The communication must originate in a CONFIDENCE that it will not be disclosed.
- (2) The element of confidentiality must be ESSENTIAL to the full and satisfactory maintenance of the relation between the parties.
- (3) The relation must be one that, in the opinion of the community, OUGHT TO BE SEDULOUSLY FOSTERED.
- (4) The INJURY from disclosure must be GREATER than the benefit thereby gained for the correct disposal of litigation.

If all four are met, the communication is protected. If Criterion 4 is not met — i.e., the benefit of having the truth before the court outweighs the injury to the relationship — disclosure is ordered despite the other three criteria being met.

APPLICATION FRAMEWORK

WIGMORE ANALYSIS: Apply All Four Criteria

CRITERION 1 — Confidence: Because [PARTY] communicated with [OTHER PARTY] in [the context of: e.g., a therapy session / mediation / a confidential journalist source relationship] with an explicit or clearly implied expectation that the communication would remain confidential, the first criterion is met.

CONCLUSION

The communications [ARE / ARE NOT] protected by case-by-case privilege under the Wigmore criteria. Because [all four criteria are met, including Criterion 4 — the injury from disclosure exceeds the litigation benefit / Criterion [X] is not met because [analysis]], disclosure is [not ordered / ordered].

Template 26 — Third-Party Records in Sexual Assault Cases — Sections 278.1–278.91 CC

IRAC TEMPLATE**USE THIS TEMPLATE WHEN:**

Use when the defence in a sexual assault or personal violence case seeks access to the complainant's private records (therapy records, psychiatric records, school records, medical records). The ss.278 CC procedure is mandatory — failure to follow it is reversible error. The complainant has standing to participate and oppose the application.

ISSUE

The issue is whether [ACCUSED] is entitled to production of [describe records — e.g., '[the complainant]'s psychiatric records from [PROVIDER]] under ss.278.1–278.91 of the Criminal Code.

RULE

SECTION 278 CC — PROCEDURE FOR THIRD-PARTY RECORDS:

STAGE 1 — APPLICATION: Defence files a WRITTEN application, served on the Crown, the record holder, and the complainant, specifying: (a) the records sought; (b) the basis for believing the records are likely relevant; (c) why production is necessary for full answer and defence.

STAGE 2 — IN CAMERA REVIEW (S.278.5): The judge conducts an in camera hearing. The complainant has standing to participate and make submissions. The judge determines whether to order production of the records to the judge for review.

BIPARTITE TEST:

- (1) Are the records **LIKELY RELEVANT** to an issue at trial or to the competence of the complainant to testify?
- (2) Does the **SALUTARY EFFECT** of disclosure on the right to make full answer and defence **OUTWEIGH** the **DELETERIOUS EFFECT** on the complainant's right to privacy and equality (s.278.5(2) CC)?

STAGE 3 — JUDGE REVIEWS RECORDS (S.278.6): If the likely relevance threshold is met, the

judge orders production TO THE JUDGE (not to the defence) for review. The judge then determines what portions, if any, to disclose to the defence.

S.278.5(2) FACTORS: The judge must consider: the accused's right to make full answer and defence; the complainant's right to personal security, equality, and privacy; the integrity of the justice system; the potential prejudice to the complainant's dignity, privacy, or security; whether the record was created in a context where the complainant had a reasonable expectation of privacy.

APPLICATION FRAMEWORK

STAGE 1 — APPLICATION: Establish the Basis for the Application

Because [ACCUSED]'s application specifies [the records sought — e.g., 'all psychiatric and therapy records of [COMPLAINANT] for the period [dates]'], states the basis for likely relevance — [e.g., 'the records may contain information about [COMPLAINANT]'s tendency to confabulate / prior inconsistent statements / the complainant's mental health at the time of the alleged offence'] — and sets out why production is necessary for full answer and defence, the procedural requirements of Stage 1 are met.

STAGE 2 — LIKELY RELEVANCE: Apply the Bipartite Test

LIKELY RELEVANT TEST: Because the records [may contain / are likely to contain] information about [specific relevance to specific trial issue — e.g., 'the complainant's credibility / the complainant's ability to accurately perceive and recall events'], the likely relevance threshold [is / is not] met.

CONCLUSION

The s.278 application [IS / IS NOT] granted at Stage 2. Because the records are [likely relevant / not likely relevant] and because the [salutary effect on full answer and defence / deleterious effect on the complainant's privacy] [outweighs / does not outweigh] the competing interest, the judge [will / will not] order production of the records for judicial review. [If granted: The judge reviews the records in camera and determines what portions, if any, are disclosed to the defence under s.278.7 CC.]

Template 27 — Spousal Privilege — Competency and Marital Communications

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when the spouse of the accused is called to testify in a criminal proceeding.

Two distinct types of spousal privilege — competency to testify (s.4 CEA) and marital communications privilege (common law) — must be addressed separately.

ISSUE

The issue is whether [ACCUSED]'s spouse is compellable to testify for the Crown in this criminal proceeding, and whether marital communications privilege applies to any communications between them.

RULE**TYPE 1 — SPOUSAL INCOMPETENCY / NON-COMPELLABILITY (s.4 CEA):**

The spouse of the accused is NOT compellable to testify for the Crown in criminal proceedings, EXCEPT where the charge involves:

- (a) An offence against the spouse (assault, sexual assault, criminal harassment of the spouse);
- (b) An offence against a child of the spouse or the accused;
- (c) Specified sexual offences involving children (ss.151-153, 155, etc.).

Outside these exceptions: the Crown CANNOT compel the spouse to testify. However, the spouse may CHOOSE to testify voluntarily — if they do, they are fully compellable and subject to full cross-examination.

TYPE 2 — MARITAL COMMUNICATIONS PRIVILEGE (Common Law):

Confidential communications made between spouses DURING the marriage are privileged. BOTH spouses hold the privilege and must consent to waive it. The privilege SURVIVES DIVORCE for communications made during the marriage.

EXCEPTION: Does NOT apply to communications made in furtherance of a crime against the other spouse or a child.

APPLICATION FRAMEWORK**TYPE 1 — Compellability Analysis: s.4 CEA — Non-Compellability**

Because [ACCUSED]'s spouse is being called by the Crown in a criminal proceeding, s.4 CEA prima facie provides that the spouse is NOT compellable. However, because the charge against [ACCUSED] [is / is not] an offence against the spouse / a child / a specified sexual offence, the s.4 exception [does / does not] apply. [If exception does not apply: The Crown cannot compel [SPOUSE] to testify. [SPOUSE] may voluntarily choose to testify — if [SPOUSE] does so, [SPOUSE] is fully compellable and subject to cross-examination.] [If exception applies: [SPOUSE] is fully compellable.]

TYPE 2 — Marital Communications Privilege: Common Law Privilege

Because [the communication at issue] was [made during the marriage / a confidential communication between [ACCUSED] and [SPOUSE]], and because it was made during the marriage in circumstances of confidence, the marital communications privilege prima facie applies. [ACCUSED] and [SPOUSE] both hold this privilege. Because [ACCUSED / SPOUSE] [has / has not] waived the privilege, the communication [is / is not] protected. [Exception: If the communication was made in furtherance of a crime against [SPOUSE / a child], the exception applies and privilege is lost.]

CONCLUSION

[ACCUSED]'s spouse [IS / IS NOT] compellable for the Crown under s.4 CEA because [the charge [does / does not] fall within the statutory exceptions for offences against the spouse or children]. [Additionally / Separately,] the [communication at issue] [IS / IS NOT] protected by marital communications privilege because [the communication was made during the marriage in confidence AND no exception applies / [SPOUSE] has waived the privilege / the crime-against-spouse exception applies].

PART H

WITNESSES AND CROSS-EXAMINATION

Template 28 — Witness Competence, Compellability, and Self-Incrimination

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when a witness's right or obligation to testify is challenged.

Key issues: child witnesses (s.16.1 CEA), accused's right not to testify (s.11(c) Charter), spousal non-compellability (Template 27), s.5 CEA self-incrimination protection.

ISSUE

The issue is whether [WITNESS] is competent to testify, whether [WITNESS] is compellable, and whether [WITNESS] has any protection against self-incrimination.

RULE

GENERAL RULE: All persons are presumptively competent and compellable to testify.

CHILDREN — s.16.1 CEA: Children under 14 do NOT take an oath. They may testify if: (1) they are able to understand and respond to questions; AND (2) they promise to tell the truth. A preliminary inquiry into competence is mandatory if challenged. The inquiry assesses ability to understand and respond — NOT intelligence or reliability.

ADULTS WITH CHALLENGED MENTAL CAPACITY — s.16 CEA: If competence is challenged, a preliminary inquiry assesses: (1) Can the witness communicate the evidence? (2) Does the witness understand the difference between truth and lies? → Sworn if understands oath/affirmation. Unsworn if can testify but does not understand oath.

THE ACCUSED: Competent to testify (can choose to). NOT compellable for the Crown (s.11(c) Charter). Failure to testify cannot be commented on adversely. If accused testifies → subject to full cross-examination including on criminal record (Corbett — Template 14).

S.5 CEA — SELF-INCRIMINATION: A compelled witness MUST answer even self-incriminating questions. But if they object BEFORE answering under s.5(2) CEA, their testimony cannot be used against them in subsequent criminal proceedings (except for perjury). S.13 Charter: parallel protection.

APPLICATION FRAMEWORK

COMPETENCE: Assess Competence

[For children:] Because [WITNESS] is under 14 years of age, the s.16.1 CEA procedure applies. The court must conduct a brief inquiry to determine: (1) Can [WITNESS] understand and respond to questions? Based on [their age / the preliminary inquiry], [WITNESS] [can / cannot] understand and respond. (2) Has [WITNESS] promised to tell the truth? [WITNESS] [has / has not] made this promise.

[WITNESS] is [competent / not competent] to testify unsworn.

s.5 CEA: Self-Incrimination for Compelled Witnesses

Because [WITNESS] is a compelled witness in a [civil / administrative / criminal proceeding where they are a witness, not the accused], [WITNESS] cannot refuse to answer on self-incrimination grounds. However, because [WITNESS] has objected under s.5(2) CEA before answering [question], [WITNESS]'s answers to [those questions] cannot be used against [WITNESS] in any subsequent criminal proceeding. [WITNESS] must still answer — the protection is against subsequent USE of the answers, not against giving them.

CONCLUSION

[WITNESS] [IS / IS NOT] competent to testify based on [the s.16.1 CEA inquiry (child under 14) / the s.16 CEA inquiry (adult with questioned capacity)]. [WITNESS] [IS / IS NOT] compellable [because they are an ordinary witness / because the spousal exception under s.4 CEA applies / because [ACCUSED] as the accused is not compellable for the Crown]. [Self-incrimination: [WITNESS] must answer all questions under s.5(1) CEA, but is protected from subsequent criminal use of those answers if s.5(2) is properly invoked.]

Template 29 — Section 9 CEA — Hostile and Adverse Witnesses

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when your own witness gives evidence at trial that is materially inconsistent with their prior statement or is hostile to you.

Section 9 CEA allows leave to cross-examine your own witness on their prior inconsistent statement.

Critical: R v Rose (voir dire required) and R v Cassibo (mandatory limiting instruction).

ISSUE

The issue is whether [the Crown / the defence] should be granted leave under s.9 of the Canada Evidence Act to cross-examine its own witness — [WITNESS] — on a prior inconsistent statement, and what use can be made of the prior statement.

RULE

S.9(1) CEA: A party may, with leave of the court, cross-examine their own witness on a prior written statement that is inconsistent with their current testimony.

S.9(2) CEA: A broader provision allowing cross-examination of a hostile/adverse witness on prior statements not limited to written statements.

PROCEDURE — R v Rose [1991] ONCA:

- (1) Counsel brings a s.9 application to the court;
- (2) The judge holds a voir dire (jury excused);
- (3) The prior statement is shown to the JUDGE — not yet to the jury or witness;

- (4) The judge assesses whether the witness is 'adverse' — gives evidence inconsistent with their prior statement in a material way;
- (5) If s.9 leave is granted: counsel may now cross-examine the witness on the prior statement.

USE OF THE PRIOR STATEMENT — R v Cassibo [1982] ONCA:

A prior inconsistent statement elicited under s.9 goes to CREDIBILITY ONLY — it shows the witness is inconsistent and may be disbelieved.

It is NOT admissible for the TRUTH of its contents (unless KGB conditions are met — Template 6).

MANDATORY LIMITING INSTRUCTION: The jury MUST be told: 'This prior statement can be used to assess whether [WITNESS] is a reliable witness, but CANNOT be used as proof that the facts stated in the prior statement are true.'

APPLICATION FRAMEWORK

STEP 1: Identify the Inconsistency

Because [WITNESS] testified at trial that [current testimony], and because [WITNESS] previously stated [content of prior statement — e.g., in a police statement / examination for discovery / affidavit] that [prior statement content], there is a material inconsistency between [WITNESS]'s current testimony and prior statement. This inconsistency [undermines / contradicts] [the Crown's / the defence's] case on [specific issue].

STEP 2: The Voir Dire Procedure

Because [the Crown / the defence] seeks s.9 leave, the trial judge must hold a voir dire (jury excused). The prior statement is shown to the judge. The judge determines whether [WITNESS] is 'adverse' within the meaning of s.9 — giving testimony inconsistent with the prior statement in a materially relevant way. Because [WITNESS]'s [current testimony] is materially inconsistent with [the prior statement on the issue of [specific issue]], the adversity requirement [is / is not] made out.

STEP 3: Use of the Prior Statement

Because the prior statement elicited under s.9 is admissible only to attack [WITNESS]'s credibility and NOT for the truth of its contents, the following limiting instruction is mandatory (Cassibo): The trier of fact may consider [WITNESS]'s prior statement as showing that [WITNESS] has given inconsistent accounts, which goes to whether [WITNESS] is a reliable witness. However, the trier of fact CANNOT use the prior statement as proof that [the facts stated in the prior statement are true]. [If KGB conditions met: The prior statement may also be used for truth — apply Template 6.]

CONCLUSION

Leave under s.9 CEA [IS / IS NOT] granted because [WITNESS] [is / is not] adverse — [WITNESS]'s current testimony is [materially inconsistent with / consistent with] the prior statement. [If granted: The prior statement elicited under s.9 goes to [WITNESS]'s CREDIBILITY only, not to the truth of its contents (Cassibo). A mandatory limiting instruction must be given. [If KGB conditions are also met: The prior statement is additionally admissible for the truth of its contents — Template 6.]]

⚠ EXAM TIP — CASSIBO LIMITING INSTRUCTION IS MANDATORY

The NCA sample exam tested the s.9 procedure (Q5 and Q6 from the sample exam). The two key points that earn marks: (1) voir dire is required before s.9 leave is granted; (2) the Cassibo limiting instruction is MANDATORY — without it, the jury may misuse the prior statement as substantive evidence. State these two points explicitly.

Template 30 — Browne v Dunn — The Rule of Fairness in Cross-Examination

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use whenever a party intends to call contradictory evidence to challenge a witness's testimony. The rule requires that you PUT the contradictory position to the witness in cross-examination first. Both criminal and civil proceedings. Failure to comply has serious consequences.

ISSUE

The issue is whether [the Crown / the defence / [PARTY]] has violated the rule in Browne v Dunn by failing to put [the contradictory evidence] to [WITNESS] during cross-examination before calling [contradictory witness / evidence].

RULE

Browne v Dunn (1893, House of Lords) — adopted into Canadian law: If a party intends to contradict or impugn a witness's testimony, they MUST put the contradictory position to the witness in cross-examination, giving the witness a fair opportunity to explain or deny.

CONSEQUENCES FOR BREACH:

- (1) The witness may be recalled to address the contradiction;
- (2) The trial judge may comment adversely on the failure, drawing an inference against the party that failed to comply;
- (3) In extreme cases, the contradicting evidence may be struck or given no weight;
- (4) The court may warn the jury that they should take into account that [WITNESS] was not given a chance to explain.

APPLIES TO BOTH CRIMINAL AND CIVIL PROCEEDINGS.

APPLIES to cross-examination of any witness, not only the accused.

R v Lyttle [2004] 1 SCR 193: Cross-examination requires a GOOD FAITH BASIS — the cross-examiner may put speculative but good-faith suggestions to a witness, but may not put suggestions based on information they KNOW to be false.

APPLICATION FRAMEWORK

STEP 1: Identify the Violation

Because [the Crown / the defence / [PARTY]] called [contradictory witness / tendered contradictory evidence] to contradict [WITNESS]'s testimony on [specific issue], and because [the Crown / the defence / [PARTY]] [did not / did] put [the contradictory position] to [WITNESS] during cross-examination, I must determine whether Browne v Dunn has been violated. [WITNESS] was [not given / was given] an opportunity to explain or deny [the contradictory position].

STEP 2: Determine the Appropriate Remedy

Because *Browne v Dunn* has [been / not been] violated, the appropriate remedy is: [Option A: Recall [WITNESS] to address the contradiction — if [WITNESS] is still available and it would be fair to recall them.] [Option B: The trial judge draws the jury's attention to the failure and invites them to consider that [WITNESS] was never given an opportunity to explain the [contradictory evidence].] [Option C: If the breach is particularly serious — [the contradictory evidence is a central plank of the case] — the court may strike the contradictory evidence or give it no weight.]

STEP 3: Lyttle — Good Faith Basis

Separately, I must consider whether [the cross-examiner] had a GOOD FAITH BASIS for the suggestions put to [WITNESS] in cross-examination. Because [the cross-examiner] [had / did not have] [evidence / information] supporting the suggestion that [describe suggestion], the good faith requirement [is / is not] met. [If not: The suggestion was based on information the cross-examiner knew to be false — a violation of the Lyttle principle and potential abuse of the cross-examination process.]

CONCLUSION

The rule in *Browne v Dunn* [HAS / HAS NOT] been violated. Because [the contradictory position] [was / was not] put to [WITNESS] in cross-examination, [WITNESS] [did / did not] have a fair opportunity to explain. The appropriate remedy is [recall / judicial comment to jury / striking contradictory evidence]. [Lyttle: The cross-examination [did / did not] have a good faith basis for the suggestions made.]

Template 31 — Prior Inconsistent Statements on Cross-Examination — Sections 10 & 11 CEA

IRAC TEMPLATE**USE THIS TEMPLATE WHEN:**

Use when cross-examining a witness on a statement they made before trial that is inconsistent with their trial testimony.

This is the standard procedure for attacking credibility through inconsistency.

Distinguish: (a) PIS for credibility only (ss.10-11 CEA); (b) PIS for truth (KGB — Template 6).

ISSUE

The issue is whether [PARTY] may cross-examine [WITNESS] on their prior [oral / written] statement — "[STATEMENT]" — which is inconsistent with [WITNESS]'s testimony at trial, and for what purpose the prior statement may be used.

RULE

S.10 CEA: A witness may be cross-examined on any prior inconsistent statement. If the witness denies or does not remember making the statement, counsel may PROVE the prior statement by tendering it.

S.11 CEA: A witness may be cross-examined on a prior WRITTEN statement (or recording). Counsel

must first draw the witness's attention to the portions of the statement they intend to use.

USE OF THE STATEMENT:

- **CREDIBILITY ONLY** (default): The prior inconsistent statement goes to whether the witness is reliable — it shows the witness has given inconsistent accounts. The trier of fact may use this to disbelieve the witness.
- **NOT for TRUTH** of contents (unless KGB conditions are met — Template 6).

MANDATORY LIMITING INSTRUCTION (Cassibo): The jury must be told the prior statement goes to credibility only and cannot be used as proof of the facts stated.

APPLICATION FRAMEWORK

STEP 1: Procedure for Cross-Examination

[For written/recorded statement — s.11:] Because the prior statement is a [written police statement / recorded statement], the cross-examiner must first draw [WITNESS]'s attention to [the specific portions] they intend to use. The cross-examiner then puts the inconsistency to [WITNESS] — '[WITNESS], you testified today that [current testimony], but is it not true that on [date] you stated [prior statement]?'

STEP 2: Determine the Admissible Use

Because the prior statement [does / does not] meet the KGB conditions (made under oath, videotaped, available for cross-examination), it is admissible [for credibility only / for the truth of its contents]. [Credibility only: The trier of fact may use the inconsistency to assess whether [WITNESS] is reliable — but cannot use the prior statement as proof of [the facts it contains].] [For truth (KGB): The trier of fact may accept the prior statement as proving [the facts it contains] — apply Template 6 for full analysis.]

CONCLUSION

[WITNESS] may be cross-examined on the prior statement under s.[10/11] CEA. Because [the witness denied / does not recall] making the statement, it [may / may not] be proved under s.10 CEA. The prior statement is admissible [for credibility only / for truth under the KGB framework]. [Mandatory limiting instruction required if admitted for credibility only: The jury cannot use the prior statement as proof that [the facts stated therein] are true.]

Template 32 — The Collateral Fact Rule — Limits on Cross-Examination

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when cross-examination concerns a matter that is not directly relevant to a fact in issue — a 'collateral' matter.

The collateral fact rule limits the ability to call contradictory evidence on collateral matters.

Know the four exceptions to the rule — these are regularly tested.

ISSUE

The issue is whether [the specific matter raised in cross-examination] is a collateral matter, and if so, whether [PARTY] is bound by [WITNESS]'s answer or may call contradictory evidence.

RULE

THE COLLATERAL FACT RULE: Where cross-examination concerns a matter COLLATERAL to the issues in the proceeding, the cross-examiner is bound by the witness's answer. They cannot call independent evidence to contradict the witness on the collateral matter.

RATIONALE: Courts cannot be distracted by collateral issues that do not directly bear on the matters in dispute. Allowing contradiction on every peripheral issue would lead to mini-trials within the main trial.

WHAT IS COLLATERAL? A matter is collateral if it is relevant only to the witness's credibility and has no direct bearing on a fact in issue in the proceeding.

FOUR EXCEPTIONS TO THE COLLATERAL FACT RULE — contradictory evidence IS admissible for:

- (1) **PRIOR INCONSISTENT STATEMENTS:** If the witness denies making a prior statement, it can be proved under ss.10-11 CEA.
- (2) **BIAS or IMPROPER MOTIVE:** Evidence that the witness has a personal interest in the outcome, or has been promised something in exchange for testimony. NOT collateral — goes to the foundation of the testimony.
- (3) **CRIMINAL RECORD:** Cross-examination on prior convictions is permitted under s.12 CEA (for the accused) or at common law (for other witnesses). The record can be proved if denied.
- (4) **PHYSICAL OR MENTAL INCAPACITY:** Evidence of the witness's defective perception or memory at the relevant time is not collateral — it goes to the reliability of their observation.

APPLICATION FRAMEWORK**STEP 1: Is the Matter Collateral?**

Because cross-examination of [WITNESS] concerned [describe the matter — e.g., 'whether [WITNESS] had previously lied about a minor matter unrelated to this case' / 'whether [WITNESS] was involved in another incident with no connection to this trial'], I must determine whether this matter is collateral. Because [this matter goes only to whether [WITNESS] is generally untruthful — not to any specific fact in issue / this matter is directly relevant to [WITNESS]'s bias / this matter goes to [WITNESS]'s ability to perceive the events in question], it [is / is not] collateral.

STEP 2: Apply the Collateral Fact Rule or Exception

[If collateral and no exception:] Because [the matter] is collateral to the issues in this proceeding, and because none of the four exceptions applies, [PARTY] is bound by [WITNESS]'s answer. [PARTY] cannot call [CONTRADICTIONARY WITNESS] to contradict [WITNESS] on this point.

CONCLUSION

[The matter raised in cross-examination IS / IS NOT] collateral. [If collateral: [PARTY] is bound by [WITNESS]'s answer and cannot call contradictory evidence.] [If the exception for [bias / prior inconsistent statement / criminal record / capacity] applies: [PARTY] may call [describe the contradictory evidence] to contradict [WITNESS] on this point, because this matter goes beyond

credibility to [the witness's foundation for testifying / actual bias / prior inconsistency] and is not merely a collateral matter.]

PART I

FACT-FINDING AND CIVIL EVIDENCE

Template 33 — Vetovec Warning — Unsavoury Witnesses

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when the case relies on the testimony of an accomplice, jailhouse informant, co-conspirator, or other witness whose evidence is inherently suspect.

The Vetovec warning tells the jury it would be dangerous to convict based on this testimony alone without independent confirmation.

R v Vetovec [1982] and R v Brooks [2000] are the key authorities.

ISSUE

The issue is whether the trial judge is required to give the jury a Vetovec warning about [WITNESS]'s testimony, and whether there is sufficient independent confirmatory evidence to support a conviction.

RULE

R v Vetovec [1982] 1 SCR 811: The old mandatory corroboration requirement for accomplice witnesses is ABOLISHED. Replaced by a DISCRETIONARY (sometimes mandatory) warning for 'unsavoury' witnesses whose evidence is inherently suspect.

R v Brooks [2000] 1 SCR 237: The Vetovec warning is MANDATORY where there is a realistic concern that the jury might act on the unsavoury witness's evidence without independent confirmation.

THE WARNING MUST IDENTIFY:

- (1) Which witnesses are unsavoury and why (e.g., the witness is an accomplice who has made a deal with the Crown, has a history of dishonesty, or has a significant personal interest in the outcome);
- (2) The specific dangers of relying on their testimony without confirmation;
- (3) What independent confirmatory evidence exists (if any) that supports the key parts of the suspect testimony.

CONFIRMATORY EVIDENCE REQUIREMENTS:

- Must be INDEPENDENT — cannot come from the suspect witness themselves;
- Must CONFIRM the material parts of the account — not just peripheral details;

- Must connect the ACCUSED to the offence.

APPLICATION FRAMEWORK

STEP 1: Identify the Unsavoury Witness

Because [WITNESS] is [an accomplice who participated in the offence / a jailhouse informant who received benefits from the Crown in exchange for testimony / a witness with a history of dishonesty and a personal motive to lie / a co-conspirator who has pleaded guilty], [WITNESS]'s testimony is inherently suspect. The jury must be warned of the specific dangers of relying on it without independent confirmation.

STEP 2: Is the Warning Required?

Because [WITNESS]'s testimony is [central to the Crown's case / the only evidence connecting [ACCUSED] to the offence / relies exclusively on [WITNESS]'s word against [ACCUSED]'s], and because a reasonable jury might rely on [WITNESS]'s testimony without independently assessing the risks, the Vetrovec warning is [mandatory / strongly advisable].

STEP 3: Identify Confirmatory Evidence

The following evidence may serve as independent confirmation of [WITNESS]'s account: [list any corroborating evidence — e.g., forensic evidence placing [ACCUSED] at the scene; surveillance footage; text messages; testimony of an independent non-suspect witness; physical evidence connecting [ACCUSED] to the offence]. This confirmatory evidence [does / does not] independently connect [ACCUSED] to [the offence / the key elements of [WITNESS]'s account].

CONCLUSION

A Vetrovec warning [IS / IS NOT] required. Because [WITNESS] is [unsavoury: accomplice / informant / biased witness] and because their testimony [is central to the Crown's case / is the only evidence connecting [ACCUSED] to the offence], the jury must be warned: it would be dangerous to convict based on [WITNESS]'s testimony alone without independent confirmation. [Independent confirmatory evidence [IS / IS NOT] available: [describe confirmatory evidence / note absence]. The jury must be instructed to look for such confirmation before acting on [WITNESS]'s account.]

Template 34 — Eyewitness Identification Evidence — The Hibbert Warning

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use when the Crown's case depends substantially on eyewitness identification of the accused. Eyewitness identification is one of the leading causes of wrongful convictions in Canada. The Hibbert warning is mandatory when identification is central to the Crown's case.

ISSUE

The issue is whether the trial judge was required to give the Hibbert warning to the jury about the dangers of eyewitness identification evidence, and whether [WITNESS]'s identification of [ACCUSED] as the perpetrator is sufficiently reliable to support a conviction.

RULE

R v Hibbert [2002] 2 SCR 445: Where eyewitness identification is central to the Crown's case, the trial judge **MUST** warn the jury of the specific dangers of eyewitness identification — even when the witness appears confident and honest.

THE WARNING MUST ADDRESS THE SPECIFIC FACTORS AFFECTING RELIABILITY IN THE CASE:

- (a) Duration of observation: How long did [WITNESS] observe [the perpetrator]?
- (b) Lighting and visibility conditions
- (c) Stress: High stress during a crime can impair the witness's ability to accurately encode and recall the perpetrator's features.
- (d) Cross-racial identification: People are less accurate at identifying individuals of a different race.
- (e) Distance between witness and perpetrator
- (f) Disguise or obscured features
- (g) Post-event contamination: Exposure to media reports naming the accused, photos, or discussions with other witnesses can corrupt the original memory.
- (h) Dock identification: The in-court identification of the accused in the dock is inherently suggestive — the jury knows who the accused is. Minimal weight.

APPLICATION FRAMEWORK

STEP 1: Is Identification Central?

Because [WITNESS]'s identification of [ACCUSED] as the person who committed [the offence] is [the central / a significant / the only] evidence connecting [ACCUSED] to the crime, the Hibbert warning is mandatory. Without [WITNESS]'s identification, the Crown [has / does not have] sufficient evidence to proceed.

STEP 2: Assess the Specific Reliability Factors

Applying the factors from Hibbert to [WITNESS]'s identification:

STEP 3: Dock Identification

[If in-court identification was made:] Because [WITNESS] first identified [ACCUSED] in the courtroom [at trial / at the preliminary inquiry], pointing to [ACCUSED] in the dock, this dock identification is inherently suggestive — [WITNESS] knew the person they were being asked to identify was the accused. The dock identification should be given minimal independent weight. It adds little to a prior out-of-court lineup identification and nothing where the dock identification was the first identification made.

CONCLUSION

The Hibbert warning [IS / IS NOT] required. Because [WITNESS]'s identification evidence [is / is not] central to the Crown's case, and because the specific circumstances of the identification — [duration: short / lighting: poor / stress: high / cross-racial: yes / post-event contamination: yes] — [significantly]

undermine / support] the reliability of [WITNESS]'s identification of [ACCUSED], the jury must be warned about [these specific factors]. [Overall reliability assessment: [WITNESS]'s identification [is / is not] sufficiently reliable to support a conviction when assessed against the specific circumstances of the observation.]

Template 35 — No Case to Meet Motion — The Arcuri Test

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use at the end of the Crown's case in a criminal trial when the defence moves for a directed verdict of acquittal.

The test is whether there is ANY evidence upon which a reasonable jury properly instructed could convict.

Different standard applies in jury trial vs judge-alone trial.

ISSUE

The issue is whether there is sufficient evidence before the court at the conclusion of the Crown's case to require [ACCUSED] to answer — specifically whether the Crown's evidence, if believed, could support a conviction by a reasonable jury properly instructed.

RULE

R v Arcuri [2001] 2 SCR 828 — THE TEST: At the conclusion of the Crown's case, the defence may bring a 'no case to meet' motion. The test is: Is there EVIDENCE upon which a reasonable jury PROPERLY INSTRUCTED could return a verdict of guilty?

THE JUDGE'S ROLE:

DIRECT EVIDENCE: If the Crown has direct evidence on each element of the offence, the motion must be dismissed — the judge does not assess the weight or credibility of the evidence. Even thin direct evidence survives the motion.

CIRCUMSTANTIAL EVIDENCE: Where the Crown's case is entirely or substantially circumstantial, the judge engages in a LIMITED WEIGHING to determine whether the evidence, if believed, could reasonably support an inference of guilt. The question is not whether guilt is the only reasonable inference — only whether it is A REASONABLE inference.

APPLICATION FRAMEWORK

STEP 1: Identify Each Element of the Offence

Because [ACCUSED] is charged with [offence], the Crown must prove each element BARD at the end of the full trial. For the no case to meet motion, I must assess whether there is any evidence on EACH element: [list the elements of the offence — e.g., for murder: (1) [ACCUSED] caused death; (2) of a human being; (3) with subjective intent to kill or cause bodily harm likely to cause death].

STEP 2: Apply the Arcuri Test to the Crown's Evidence

Because the Crown's case is based on [direct / circumstantial / a combination of direct and circumstantial] evidence, [I apply the Arcuri standard / I do not assess credibility but only existence of evidence].

CONCLUSION

The no case to meet motion [IS / IS NOT] granted. Because [there is / is no] evidence on each element of [offence] that could, if believed, support a conviction by a reasonable jury properly instructed, [ACCUSED] [must answer the case / is entitled to a directed verdict of acquittal]. [If any element has no evidence: Because there is no evidence whatsoever on [specific element], the motion is granted on that element and [ACCUSED] cannot be convicted of [offence] on the Crown's current evidence.]

Template 36 — Civil Standard of Proof — FH v McDougall and Civil Special Rules

IRAC TEMPLATE

USE THIS TEMPLATE WHEN:

Use in any civil evidence question involving the standard of proof, adverse inferences, res ipsa loquitur, or the relationship between criminal and civil proceedings.

FH v McDougall [2008] abolished any heightened standard for serious civil allegations.

Know the civil-specific rules that differ from criminal: adverse inference, res ipsa, prior convictions/acquittals.

ISSUE

The issue is whether [PARTY] has met the civil standard of proof — balance of probabilities — on the allegation of [describe civil claim], and whether any special civil rules apply: adverse inference from failure to testify, res ipsa loquitur, or the evidentiary effect of a prior criminal acquittal or conviction.

RULE

FH v McDougall [2008] 3 SCR 41 — THE CIVIL STANDARD:

- ONE STANDARD: Balance of probabilities — more probable than not (>50%).
- NO HEIGHTENED STANDARD: There is no higher standard for serious allegations. The old rule ('serious allegations require clearer proof') is abolished.
- COGENCY REQUIREMENT: More serious or inherently improbable allegations require more cogent evidence to establish probability — not because the standard changes, but because improbable events need more explanation to be accepted as more probable than not.
- W(D) DOES NOT APPLY.

ADVERSE INFERENCE (Civil): A party's failure to testify or to call a witness who could give relevant evidence allows the trier of fact to draw an adverse inference — that the testimony would have been unfavourable to that party.

RES IPSA LOQUITUR — Fontaine v Insurance Corp of BC [1998] 1 SCR 424: Res ipsa loquitur survives only as a factual inference principle, not a distinct rule. Where the accident is of a kind that does not ordinarily occur without negligence and was within the defendant's control, the trier of fact

may infer negligence from the circumstances. The legal burden does NOT shift to the defendant — the plaintiff always bears the burden.

PRIOR CRIMINAL ACQUITTAL: Does NOT bind the civil court. The civil court may find the same conduct occurred on BOP even after criminal acquittal. (Toronto (City) v CUPE [2003] SCC 63)

PRIOR CRIMINAL CONVICTION: IS admissible in civil proceedings as evidence that the person committed the act. (Provincial Evidence Acts)

APPLICATION FRAMEWORK

STEP 1: Apply the FH v McDougall Standard

Because this is a civil proceeding, [PLAINTIFF / PARTY] must prove their case on the BALANCE OF PROBABILITIES. Because the allegation — [describe: e.g., 'that [DEFENDANT] racially profiled [PLAINTIFF] in exercising police powers'] — is [serious / inherently improbable], the evidence required to establish it must be correspondingly [cogent]. However, the standard remains BOP — not a higher standard (FH v McDougall). On the evidence, [PLAINTIFF]'s claim [has / has not] been established on the balance of probabilities because [analysis].

STEP 2: Adverse Inference (If Applicable)

Because [DEFENDANT / PARTY] [chose not to testify / failed to call [WITNESS] who would have relevant evidence about [specific issue]], the trier of fact may draw an adverse inference. Because [DEFENDANT] had access to evidence about [the key issue] and failed to place that evidence before the court, the trier of fact may infer that [DEFENDANT]'s testimony / [WITNESS]'s evidence would have been unfavourable to [DEFENDANT].

STEP 3: Res Ipsa Loquitur (If Applicable)

Because the [accident / incident] is of a type that does not ordinarily occur without negligence — [describe why] — and because [DEFENDANT] had exclusive control over [the instrumentality that caused the harm], the doctrine of res ipsa loquitur (as absorbed into general negligence principles in Fontaine [1998]) permits an inference of negligence from the circumstances. The burden remains on [PLAINTIFF] — [PLAINTIFF] has made out a prima facie case through the inference. [DEFENDANT] may rebut by providing a non-negligent explanation.

STEP 4: Effect of Prior Criminal Finding

[Prior criminal acquittal:] Because [DEFENDANT] was acquitted of [offence] in criminal proceedings, that acquittal does NOT bind this civil court. Because the criminal standard is BARD and the civil standard is BOP, the jury's failure to be satisfied BARD is not inconsistent with this court finding, on BOP, that [DEFENDANT] committed the act. (Toronto v CUPE [2003]).

CONCLUSION

[PLAINTIFF]'s claim [IS / IS NOT] established on the balance of probabilities (FH v McDougall). [Adverse inference: Because [DEFENDANT] failed to testify / call [WITNESS], an adverse inference [is / is not] drawn.] [Res ipsa: The circumstances support / do not support an inference of negligence from the accident itself (Fontaine).] [Prior criminal finding: The [acquittal does not bind / conviction is admissible evidence in] this civil proceeding.]

△ EXAM TIP — CIVIL EVIDENCE APPEARS IN 30-40% OF THE NCA EVIDENCE EXAM

The sample exam tested civil evidence in Parts A (Q20-30) and D (Q1-6) — nearly half the exam. Never skip civil evidence questions. The key distinctions to state: (1) BOP not BARD; (2) no W(D); (3) adverse inference available; (4) criminal acquittal not binding; (5) res ipsa loquitur is a factual inference, not a burden-shifting rule (Fontaine). These five points appear in nearly every civil evidence question.